

13. How many years does a person of Indian origin need to reside in India to become a citizen of India under the Citizenship Act, 1955?

- (a) 5 years
- (b) 3 years
- (c) 7 years
- (d) 9 years
- (e) 10 years

Chhattisgarh P.C.S (Pre) 2013

Ans. (c)

To acquire citizenship by registration under Section 5(1)(a) of the Citizenship Act, 1955, the person of Indian origin must be ordinarily residing in India for 7 years.

14. Who among the following has the exclusive power of determining the issue of citizenship in India?

- (a) The Court
- (b) The President
- (c) Lok Sabha
- (d) Central Government
- (e) State Government

Chhattisgarh P.C.S (Pre) 2013

Ans. (*)

According to Article 11, Parliament can make provisions with respect to the acquisition and termination of citizenship. The Central government can also make Rules by exercising its power under section 18 of the Citizenship Act, 1955, but only Parliament has the exclusive power of determining the issue of citizenship in India. Thus, none of the options are correct.

15. When was the Citizenship (Amendment) Bill 2019 passed by Parliament?

- (a) 10 December, 2019
- (b) 11 December, 2019
- (c) 12 December, 2019
- (d) 13 December, 2019

U.P. R.O./A.R.O. (Mains) 2016

Ans. (b)

The bill was passed by the Lok Sabha on 9th December 2019. On 11th December 2019, Rajya Sabha passed the contentious Citizenship (Amendment) Bill 2019. The bill got President's assent on 12 December, 2019. The Bill amends the Citizenship Act, 1955, and for the first time, will grant citizenship based on religion to non-muslim communities from Afghanistan, Bangladesh and Pakistan, who entered India on or before December 31, 2014.

16. When was the Citizenship (Amendment) Act passed?

- (a) 11th December, 2018
- (b) 11th December, 2019

(c) 11th October, 2019

(d) 11th October, 2020

(e) None of the above / More than one of the above

66th B.P.P.C.S. (Pre) 2020

Ans. (b)

See the explanation of the above question.

17. What is the purpose of the Citizenship (Amendment) Act, 2019?

- (a) To remove Bangladeshi illegal immigrants
- (b) To identify genuine Indian citizens
- (c) To check border infiltration by foreigners
- (d) To grant citizenship to persecuted minority groups of Afghanistan, Bangladesh and Pakistan
- (e) None of the above/More than one of the above

67th B.P.S.C. (Pre), 2022

Ans. (d)

The Citizenship (Amendment) Act, 2019 seeks to grant citizenship to a class of migrants who are Hindus, Sikhs, Buddhists, Jains, Parsis and Christians from Afghanistan, Bangladesh and Pakistan, eligible for citizenship who arrived in India before the end of December, 2014.

Fundamental Rights

*The first explicit Demand for the Fundamental Rights (FR) came in the form of the **"Constitution of India Bill, 1895"** which was inspired by Bal Gangadhar Tilak. The **Moti Lal Nehru Report** of 1928 demanded inalienable Fundamental Rights for the people of India. *The Congress adopted a resolution on Fundamental Rights at the **Karachi Session of 1931**, presided over by Sardar Vallabhbhai Patel. *The Fundamental rights are enshrined in Part III of the Constitution from Articles 12 to 35. *Originally, the Constitution provided for seven fundamental rights – (1) Right to Equality, (2) Right to Freedom, (3) Right against Exploitation, (4) Right to Freedom of religion, (5) Cultural and Educational rights, (6) Right to Property and (7) Right to Constitutional remedies. *However, the **right to Property was deleted** from the list of fundamental rights by the **44th Amendment Act, 1978**. *Now, the right to property is a legal right under **Article 300-A** in part XII of the Constitution. Fundamental Rights are the guarantee against the arbitrary actions of the State. *They can be suspended during the operation of a national emergency except the rights guaranteed by **Articles 20 and 21**. They are **justiciable**. *Fundamental Rights in Indian Constitution are often compared with the Bill of Rights in the Constitution of the U.S.A. Part

III of the Indian Constitution is rightly regarded as the Magna Carta of India. *The Fundamental Rights are defended and guaranteed by the Constitution. *Article 14 provides for Equality before the law and equal protection of the laws. *The Right to equality is enshrined in the Constitution from Articles 14 to 18. *Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth (article 15). *Article 16- Equality of opportunity in matters of public employment. *Article 17- Abolition of untouchability and prohibition of its practice. *Article 18 – Abolition of titles except military and academic. *The Right to freedom is described in Articles 19 to 22. Article 19 guarantees all citizens six rights. *These are – Article 19(1) (a) – Right to freedom of speech and expression, Article 19 (1) (b) – Right to assemble peacefully and without arms, Article 19(1) (c) – **Right to form associations or unions or cooperative societies**, Article 19(1) (d) – **Right to move freely throughout the territory of India**, Article 19 (1)(e) – Right to reside and settle in any part of the territory of India and Article 19(1) (g) – Right to practice any profession or to carry on any occupation, trade and business. *Article 20 provides for protection in respect of conviction for offences. *Protection of life and personal liberty is described in Article 21. ***Eighty – Sixth Constitutional Amendment Act, 2002** made elementary education a fundamental right and added Article 21 – A. *Article 22 provides for protection against arrest and detention in certain cases. Right against exploitation is described in Articles 23 and 24. *Article 23 provides for the prohibition of traffic in human beings and forced labour. *Article 24 provides for the prohibition of employment of children in factories etc. *The Right to freedom of religion is described in Articles 25 to 28. *Articles 29 and 30 are related to the cultural and educational rights of minorities. *Article 32 provides for Constitutional remedies. *Dr. Ambedkar called Article 32 as 'the core soul of the Constitution.' *The Supreme Court (under Article 32) **can issue writs only for the enforcement of fundamental rights**, and the High Courts (under Article 226) **can issue writs not only for the enforcement of fundamental rights but also for any other purpose**. *Five kinds of writs are mentioned in the Articles 32 and 226 of the Constitution:

- (1) **Habeas Corpus (to have the body of)** – The writ of Habeas Corpus can be issued against both public authorities as well as private individuals who have detained another person to produce the body of the latter before it. * If the detention is found to be illegal, the detained person would be set free. * This writ is the bulwark of individual liberty against arbitrary detention.

- (2) **Mandamus (We command)** – It is a command issued by the court against a public official, any public body, a corporation, an inferior court, a tribunal or a government, asking them to perform official duties that one has failed or refused to perform.
- (3) **Prohibition (to forbid)** – It is issued by a higher court to a lower court or tribunal to prevent the latter from exceeding its jurisdiction or usurping a jurisdiction that it does not possess.
- (4) **Certiorari (to be certified)** – It is issued on the grounds of excess of jurisdiction or lack of jurisdiction or error of law. It is issued by a higher court to a lower court to transfer a case pending with the latter to itself or to quash the order of the latter in a case.
- (5) **Quo – Warranto (By what authority or warrant)** – It is issued by the court to enquire into the legality of the claim of a person to a public office.

***Article 358** provides for the suspension of provisions of Article 19, during emergencies. ***Article 359** provides for the suspension of the enforcement of fundamental rights except Articles 20 and 21 during emergencies (after the 44th Constitutional Amendment Act). *The Supreme Court, in its judgement in the case of *Bachan Singh Vs State of Punjab*, held that the sentencing discretion inherent in section 302 of the IPC is not violative of Articles 14, 19 and 21 of the Indian Constitution.

1. Which one of the following factors constitutes the best safeguard of liberty in a liberal democracy?

- (a) A committed judiciary
- (b) Centralization of powers
- (c) Elected government
- (d) Separation of powers

I.A.S. (Pre) 2021

Ans. (d)

In the liberal approach which is inherent in democracy, all forms of power are rooted in the will of the people. This approach enhances the rule of law as one of the basic foundations of democracy; it affirms the separation of powers as a vehicle for their restraint, and it promotes individuals' rights and freedoms as a prerequisite for their dignity. **A committed judiciary** will never go against the government's policies. **Centralization of power** refers to a setup in which the decision-making powers are concentrated in a few leaders at the top of the organizational structure, which may lead to authoritarian tendencies. An **Elected government is expected** to ensure liberty but it is not the best safeguard to ensure liberty. Therefore, the rest **three cannot be the answer**.

2. Which Congress Session passed the resolution of Fundamental Rights in 1931?

- (a) Allahabad (b) Karachi
(c) Mumbai (d) Gaya

Jharkhand P.C.S. (Pre) 2023

Ans. (b)

The Karachi session of Congress was held on March 26 to 31, 1931 and was Presided by Sardar Vallabhbhai Patel. It was held following the Gandhi-Irwin Pact and in the aftermath of Bhagat Singh, Sukhdev and Rajguru's execution. In this session, Gandhi-Irwin Pact or Delhi Pact was endorsed and the goal of Purna Swaraj was reiterated. The resolutions on Fundamental Rights and the National Economic Programme were adopted in the Karachi session of Congress in 1931.

3. Which of the following is correct?

- (a) The Nehru Report (1928) had advocated the inclusion of Fundamental Rights in the Constitution of India.
(b) The Government of India Act, 1935 referred to Fundamental Rights.
(c) The August Offer, 1940, included the Fundamental Rights.
(d) The Cripps Mission 1942 referred to Fundamental Rights.

U.P.P.C.S. (Mains) 2009

Ans. (a)

The Nehru Report (1928) was in favour of the inclusion of Fundamental Rights in the Constitution of India, so option (a) is correct.

4. Who said the following words about Fundamental Rights : "A Fundamental Right should be looked upon, not from the point of view of any particular difficulty of that moment but as something that you want to make permanent in this Constitution"?

- (a) Justice P.N. Bhagwati (b) Jawaharlal Nehru
(c) Dr. S. Radhakrishnan (d) Dr. B.R. Ambedkar

M.P.P.C.S. (Pre.) 2022

Ans. (b)

Pandit Jawaharlal Nehru said: "A fundamental right should be looked upon, not from the point of view of any particular difficulty of the moment, but as something that you want to make permanent in the Constitution."

5. Who among the following person said for the Fundamental Rights "a pledge to our people and a pact with the civilized world"?

- (a) Pt. Jawahar Lal Nehru
(b) Dr. Bhim Rao Ambedkar

- (c) Dr. Rajendra Prasad
(d) Dr. S. Radha Krishnan

U.P.P.C.S. (Pre) 2021

Ans. (d)

In the words of our 'philosopher king', Dr. S. Radhakrishnan, the Fundamental Rights are 'a pledge to our people and a pact with the civilized world'. And as the great jurist Patanjali Sastry, the former Chief Justice of our Supreme Court, said: "The whole object of Part III of the Constitution is to provide protection for the freedoms and rights mentioned therein against arbitrary invasion by the state".

6. 'Fundamental Rights' are:

- (a) Justifiable (b) Non-justifiable
(c) Flexible (d) Rigid

M.P.P.C.S. (Pre) 2013

Ans. (a)

The fundamental rights are enforceable by the Courts, subject to certain restrictions.

7. The rights are called Fundamental Rights because

- i. It is written in the Constitution.
ii. It is democratic.
iii. It is public welfare.
iv. It is essential for personality development.
v. Parliament can't make law against it.

- (a) i ii iii (b) i iii v
(c) i iv v (d) ii iii v
(e) None of the Above

Chhattisgarh P.C.S. (Pre) 2017

Ans. (c)

The Fundamental Rights are written in the Constitution. They are essential for personality development. The Parliament can't make laws against them since they are a part of the basic structure of the Constitution.

8. Fundamental Rights –

- (a) Cannot be suspended
(b) Can be suspended by order of Prime Minister
(c) Can be suspended on the will of President
(d) Can be suspended during Emergency

U.P. Lower Sub. (Pre) 2002

Ans. (d)

The fundamental rights are natural and non-transferable rights. Fundamental rights can only be suspended during an emergency for which provision has been given under Art. 358 and 359 of the Constitution. Fundamental rights under Articles 20 and 21 can never be suspended.

9. Consider the following statements about the Fundamental Rights in India:

- 1. They are a guarantee against state action**
- 2. They are enumerated in Part III of the Constitution**
- 3. They ensure social, economic and political justice.**
- 4. They are unlike Bill of Rights in the U.S.A.**

Now, select the correct answer from the code given below:

Code :

- (a) 1 and 2 are correct (b) 2 and 3 are correct
(c) 1, 2 and 3 are correct (d) 2, 3 and 4 are correct

U.P.P.C.S. (Pre) 1998

Ans. (c)

The fundamental rights are guaranteed by the Constitution of India against state action. These rights have been enumerated in Part III of the Constitution. Thus statement 1 and 2 are correct. The socio-economic Justice as visualized by the Indian constitution is found mostly in the Directive Principles of State Policy (Part IV) of the constitution of India and to a little extent in the chapter on fundamental rights and certain other provisions of the constitution. These rights are like the Bill of Rights in the U.S.A. Thus option (c) is the correct answer.

10. Under which Article of the Constitution of India, Fundamental Rights have been provided to citizens?

- (a) Articles 112 to 115
(b) Article 12 to 35
(c) Articles 222 to 235
(d) None of these

39th B.P.S.C. (Pre) 1994

U.P. Lower Sub. (Mains) 2015

44th B.P.S.C. (Pre) 2000

Ans. (b)

Part III (Art.12-35) of the Constitution enumerates 6 Fundamental Rights which are provided to citizens.

11. Which Article of the Constitution gives precedence to Constitutional provisions over the laws made by the Union Parliament/State Legislatures?

- (a) 13 (b) 32
(c) 245 (d) 326

45th B.P.S.C. (Pre) 2001

Ans. (a)

Article 13 of the Indian Constitution makes provision that pre-constitutional laws and post-constitutional laws, if inconsistent with the provisions of Fundamental Rights enumerated in part III, shall be void to the extent of such inconsistency. Article 245 is related to the extent of laws made by the Parliament and by the Legislatures of the States. Article 326 is related to the election of the Lok Sabha and Legislative Assemblies of the States to be on the basis of adult suffrage, and Article 32 is for the Constitutional remedies. Thus in the given option, (a) seems to be the correct answer.

12. The main object of Article 13 of the Indian Constitution is to secure the Paramountcy of the Constitution regarding :

- (a) Directive Principles of State Policy
(b) Fundamental Rights
(c) Fundamental Duties
(d) All of the above

U.P.P.C.S. (Pre) 1999

Ans. (b)

See the explanation of the above question.

13. In the Indian Constitution, the right to equality is granted by five Articles, They are:

- (a) Article 16 to Article 20
(b) Article 15 to Article 19
(c) Article 14 to Article 18
(d) Article 13 to Article 17

I.A.S. (Pre) 2002

U.P. Lower Sub. (Pre) 2015

U.P.R.O./A.R.O. (Pre) 2014

Ans. (c)

In the Indian constitution, the right to equality is granted under five Articles from Articles-14 to 18, as follows-

Article

- 14-** Equality before law
15- Prohibition of discrimination on the grounds of religion, race, caste, sex or place of birth.
16- Equality of opportunity in matters of public employment.
17- Abolition of untouchability
18- Abolition of titles.

14. The Right to Equality is given by-

- (1) Article 13 (2) Article 14
(3) Article 15 (4) Article 16

Use the code given below to choose the correct answer-

Code :

- (a) 1 and 2 (b) 1,2 and 3
(c) 2,3 and 4 (d) All above

U.P.P.C.S. (Pre) 2009

Ans. (c)

The right to equality has been incorporated in Part III of the Indian Constitution under Articles 14 to 18. Article 14 deals with Right to Equality, Article 15 deals with the Prohibition of Discrimination on the grounds of Religion, Race, Caste, Sex or place of Birth, Article 16 deals with equality of opportunity in the matter of Public employment, Article 17 deals with Abolition of Untouchability and Article 18 deals with Abolition of Title. Therefore Articles 14, 15 and 16 provide the Right to Equality. Thus option (c) is correct.

15. Which one of the following Articles of the Indian Constitution puts an absolute limitation on the legislative power:

- (a) Article 14 (b) Article 15
(c) Article 16 (d) Article 17

U.P.P.C.S. (Pre) 1999

Ans. (a)

Under Article 14 of the Constitution of India, Equality before the law has been incorporated. Under Article 14, the state shall not deny any person equality before the law or the equal protection of laws within the territory of India on the grounds of religion, race, caste, sex or place of birth. Article 14 puts a limitation on the legislative power. Every person, whether a citizen or a foreigner has this right under Article 14.

16. Which one of the following Articles of the Constitution of India is related to equality before law?

- (a) Article 16 (b) Article 15
(c) Article 14 (d) Article 13

U.P.P.C.S. (Mains) 2015

Ans. (c)

See the explanation of the above question.

17. In which article of the constitution 'Equal Protection of Law' is provided?

- (a) Article 12 (b) Article 13
(c) Article 14 (d) Article 15

Chhattisgarh P.C.S. (Pre) 2018

Ans. (c)

Article 14 says that the state shall not deny to any person equality before the law' or 'the equal protection of the laws' within the territory of India. It confers rights on all persons, whether citizens or foreigners. The concept of Equal Protection of the law is taken from the American Constitution. It suggests (a) the equality of treatment under equal circumstances, both in the privileges conferred & liabilities imposed by the laws. (b) the similar application of the same laws to all persons who are similarly situated, and (c) the like should be treated alike without any discrimination

18. A legislation which confers on the executive or administrative authority an unguided and uncontrolled discretionary power in the matter of application of law violates which one of the following Articles of the Constitution of India?

- (a) Article 14 (b) Article 28
(c) Article 32 (d) Article 44

I.A.S. (Pre) 2021

Ans. (a)

The court exercises control over the delegation of discretionary powers to the administration by adjudicating upon the constitutionality of the law under which such powers are delegated with reference to the fundamental rights enunciated in Part III of the Indian Constitution. Therefore, if the law confers vague and wide discretionary power on any administrative authority, it may be declared ultra vires Article 14, Article 19 and other provisions of the Constitution. Article 14 of the Constitution guarantees equality before the law, but the courts have permitted reasonable classification to be made. Where the law is valid under the article, a discriminatory action would still be violative of the equality clause.

Hence, option (a) is correct.

19. What is meant by 'Rule of Law'?

- (a) One act for all and one judiciary for all
(b) One act for all and one State for all
(c) One State for all and one judiciary for all
(d) All acts for one and one judiciary for all
(e) None of the above / More than one of the above

66th B.P.S.C. (Pre) 2020

Ans. (a)

The 'Rule of Law' implies that the creation of laws, their enforcement and the relationship among legal rulers are themselves legally regulated, so that no one, including the most highly placed official, is above the law. The legal constraint on rulers means that the government is subject to existing laws as much as its citizens are. Thus, a closely

related nation is the idea of equality before the law, which holds that no legal person shall enjoy privileges that are not extended to all and that no person shall be immune from legal sanctions.

20. Prohibition of discrimination on the ground of religion etc. (Article 15 of the Constitution of India) is a Fundamental Right classifiable under:

- (a) The Right to Freedom of Religion
- (b) The Right against Exploitation
- (c) The Cultural and Educational Rights
- (d) The Right to Equality

I.A.S. (Pre) 1995

Ans. (d)

Prohibition of discrimination on the grounds of religion, race, caste, sex or place of birth is a fundamental right which is provided in Article 15 of the Indian Constitution under the category of Right to Equality (Art. 14-18).

21. Which one of the following fundamental rights was amended as a result of the decision of the Supreme Court of India in 'State of Madras Vs. Champakam Dorairajan' case:

- (a) Right to equality before law
- (b) Right against discrimination
- (c) Right against untouchability
- (d) Right to freedom of speech and expression

U.P.P.C.S. (Pre) 1997

Ans. (b)

The right against discrimination was amended following the Supreme Court's verdict in the case of the State of Madras Vs. Champakam Dorairajan. In Article 15, clause (4) was added by the first Constitution Amendment (1951) for making special provisions for the advancement of the socially and educationally backward classes.

22. Under which article of the Constitution reservations in admission to educational institutions, including private and unaided, to OBCs/ST/SC is made?

- (a) Article 15(4)
- (b) Article 15(5)
- (c) Article 16(4)
- (d) Article 16(5)

Uttarakhand P.C.S. (Pre) 2012

Ans. (b)

Article 15 is related to the prohibition of discrimination on the grounds of religion, race, caste, sex, or place of birth. Clause 5 of this Article empowers the State to make such special

provisions relating to reservation in admission for Scheduled Castes or Scheduled Tribes in educational institutions which include private educational institutions, whether aided or unaided by the State other than the minority educational institutions referred to in clause (1) of Article 30. The 93rd Amendment Act, 2005 enabled the provision of reservation (27%) for other backward classes in Government as well as in private educational institutions.

23. The provisions of reservation of O.B.C. is made in the Constitution under which Articles?

- (a) Article 13(II) & 14
- (b) Article 14 & 15
- (c) Article 15 (IV) & 16 (IV)
- (d) Article 17 & 18

Uttarakhand P.C.S. (Pre) 2016

Ans. (c)

Article 15(4) empowers the State to make special provision for the advancement of socially and educationally backward classes or for the Scheduled Castes and Scheduled Tribes. Similarly, Article 16(4) empowers the state to make provisions for the reservation in appointments or posts in favour of backward-class citizens.

24. Which of the following Articles of the Indian Constitution guarantees equality of opportunity to all citizens of India in matters relating to public employment?

- (a) Article 15
- (b) Article 16 (1) and 16(2)
- (c) Article 16(3)
- (d) Article 16 (3), (4) and (5)

U.P.P.C.S. (Mains) 2009

Ans. (b)

Under Articles 16(1) and 16(2), the equal opportunity for all citizens, in matters relating to employment or appointment to any office under the State, has been ensured.

25. Which one of the following is not included in the fundamental right to equality as enshrined in the Indian Constitution?

- (a) Equality before law
- (b) Social equality
- (c) Equal opportunity
- (d) Economic equality

U.P.P.C.S. (Spl) (Mains) 2008

Ans. (d)

The right to equality does not include economic equality as a Fundamental Right. Equality before the law under Article 14, social equality under Article 15 and Equal opportunity under Article 16 are included under the fundamental right to equality.

26. Assertion (A) : The State can treat unequal differently with the objective of creating a level playing field in the social, economic and political spheres.

Reason (R) : Among equals the law should be equal and equally administered.

In the context of above statements select the correct answer.

- (a) (A) is true, but (R) is false.
- (b) (A) is false, but (R) is true.
- (c) Both (A) and (R) are correct, but (R) is not correct explanation of (A).
- (d) Both (A) and (R) are true and (R) is the correct explanation of (A).

U.P.P.C.S. (Mains) 2016

Ans. (d)

The State can treat unequals differently, as equal protection of law guaranteed by Article 14 does not mean that all laws must be general in character. There are reasonable classifications varying to the needs of different classes of persons with the objective of creating a level playing field in social, economic and political spheres. But among the equals, the law should be equal and equally administered. Thus both (A) and (R) are true and (R) is the correct explanation of (A).

27. Consider the following statements :

Statement-I :

The Supreme Court of India has held in some judgements that the reservation policies made under Article 16(4) of the Constitution of India would be limited by Article 335 for maintenance of efficiency of administration.

Statement-II :

Article 335 of the Constitution of India defines the term 'efficiency of administration'.

Which one of the following is correct in respect of the above statements?

- (a) Both Statement-I and Statement-II are correct and Statement-II is the correct explanation for Statement-I
- (b) Both Statement-I and Statement-II are correct and Statement-II is not the correct explanation for Statement-I
- (c) Statement-I is correct but Statement-II is incorrect
- (d) Statement-I is incorrect but Statement-II is correct

I.A.S. (Pre.) 2023

Ans. (c)

Article 16 (4) of the Constitution enables States to make any provision for the reservation of appointments or posts in favour of any backward class of citizens which, in the opinion of the State, is not adequately represented in the services under the State. However, the Supreme Court of India has consistently referred to the notions of "efficiency" and "merit," while adjudicating the validity of various reservation policies. The Court has held in several judgments, such as Indra Sawhney Vs Union of India 1993 and M Nagaraj Vs Union of India 2006, that the reservation policies made under Article 16(4) of the Constitution have to be interpreted in the background of Art. 335 which provides for "maintenance of efficiency of administration," while making appointments to services and posts in connection with the affairs of the Union or of a State. Article 335 states that the claims of the members of the Scheduled Castes and the Scheduled Tribes shall be taken into consideration, consistently with the maintenance of efficiency of administration, in the making of appointments to services and posts in connection with the affairs of the Union or of a State. This Article has, however, not defined the expression 'efficiency of administration'. Hence, statement I is correct but statement II is incorrect.

28. Under which Amendment Act was the reservation in promotion for the Scheduled Castes and Scheduled Tribes ensured by inserting Clause '4A' in Article 16?

- (a) 75th Amendment Act, 1994
- (b) 76th Amendment Act, 1994
- (c) 77th Amendment Act, 1995
- (d) 108th Amendment Act, 2008

Jharkhand P.C.S. (Pre) 2023

Ans. (c)

The 77th Amendment Act, 1995 ensured the reservation in promotion for the Scheduled Castes and Scheduled Tribes by inserting clause (4A) in the Article- 16.

29. Which of the following enabled the Supreme Court of India to deduce a fundamental right to equal pay for equal work:

- (a) The word 'socialist' used in the Preamble to the Constitution
- (b) (a) read with Article 14 of the Constitution
- (c) (a) read with Article 16 of the Constitution
- (d) (a), (b) and (c) all read together

U.P.P.C.S. (Pre) 1999

Ans. (d)

The word 'Socialist' is in the Preamble. Article 14, Article 16 and Article 39 (d), together with the Preamble, enabled the court to deduce the right to Equal pay for Equal work as a Fundamental Right.

30. Which of the following Article/Articles read with the word 'Socialist' used in the Preamble of the Indian Constitution enabled the Supreme Court to deduce a fundamental right to Equal Pay for Equal Work?

- (a) Article 14 (b) Articles 14 and 15
(c) Articles 14, 15 and 16 (d) Articles 14 and 16

U.P.P.C.S (Pre) 2001

U.P.U.D.A./L.D.A. (Pre) 2002

U.P.P.C.S. (Pre) 2003

Ans. (d)

In a landmark case of Randhir Singh Vs. Union of India, the Supreme Court held that "Construing Article 14 and 16 in the light of the preamble and Article 39 (d) we are of the view that the principle 'Equal pay for equal work' is deducible from those Articles and may be properly applied to cases of unequal scales of pay based on no classification or irrational classification though these drawing the different scales of pay do identical work under the same employer." Thus correct answer is option (d).

31. Under what provision of the Constitution, untouchability has been abolished?

- (a) Art. 14 (b) Art. 21
(c) Art. 17 (d) Art. 19

M.P.P.C.S. (Pre) 1997

U.P.P.C.S. (Mains) 2003

69th B.P.S.C. (Pre) 2023

Ans. (c)

Article 17 abolishes untouchability and declares that its practice in any form is forbidden and that the enforcement of any disability arising out of untouchability shall be an offence and punishable by law.

32. Which Article of the Indian Constitution eradicates untouchability and prohibits its practice in any form?

- (a) Article 16 (b) Article 17
(c) Article 18 (d) Article 15

U.P.P.C.S. (Mains) 2015

U.P.P.C.S. (Mains) 2013

Ans. (b)

See the explanation of the above question.

33. In which of the following Articles of the Indian Constitution, the abolition of untouchability has been guaranteed?

- (a) Article 14 (b) Article 15
(c) Article 16 (d) Article 17

U.P. R.O./A.R.O. (Pre) 2017

M.P.P.C.S. (Pre), 2021

Ans. (d)

See the explanation of the above question.

34. Article 17 of the Indian Constitution deals with

- (a) Education
(b) Health
(c) Abolition of untouchability
(d) Food guarantee

M.P.P.C.S. (Pre) 2013

Ans. (c)

See the explanation of the above question.

35. Which one of the following Articles of the Constitution abolished untouchability:

- (a) Article 18 (b) Article 17
(c) Article 16 (d) Article 15

Uttarakhand U.D.A./L.D.A. (Pre) 2007

Uttarakhand P.C.S. (Pre) 2005

U.P.P.C.S. (Pre) 1994

Ans. (b)

Article 17 of the Indian Constitution abolished untouchability.

36. Under which Article Scheduled Castes and Scheduled Tribes have been granted fundamental, socio-economic, political and cultural rights?

- (a) Article 20 (b) Article 19
(c) Article 18 (d) Article 17

M.P.P.C.S. (Pre) 2015

Ans. (d)

Article 17 of the Constitution provides 'Abolition of untouchability', and its practice in any form is forbidden. It is a "statement of principle" with the objective to remove humiliation and multifaceted harassment meted to the Dalits and to ensure their fundamental, socio-economic, political and cultural rights.

37. Which one of the following categories of Fundamental Rights incorporates protection against untouchability as a form of discrimination?

- (a) Right against Exploitation
- (b) Right to Freedom
- (c) Right to Constitutional Remedies
- (d) Right to Equality

I.A.S. (Pre) 2020

Ans. (d)

According to the Article 17 of the Constitution "Untouchability" is abolished, and its practice in any form is forbidden. The enforcement of any disability arising out of "Untouchability" shall be an offence punishable in accordance with Law. Article 17 is classified under the fundamental right to equality, in the Indian Constitution.

38. Prohibition and abolishment of untouchability may be achieved by-

1. Making laws
2. Improving Education
3. Public Awareness
4. Providing Jobs/Services

Code :

- (a) 1, 2, and 3
- (b) 2, 3 and 4
- (c) 1 and 2
- (d) 2 and 4

U.P.P.C.S. (Pre) 1992

Ans. (a)

Untouchability may be abolished by improving the education system, making laws, and increasing public awareness, but providing jobs/services to people is not a proper solution to abolish untouchability. Parliament, by the Protection of Civil Rights Act, 1955 has declared the practice of untouchability a punishable offence.

39. Following are two statements, one is labelled as Assertion (A) and other as Reason (R) :

Assertion (A) : Untouchability is worst form of structural violence.

Reason (R) : Untouchability has been practiced in the name of religious sanctions.

Consider the above statements and select the correct answer from the codes given below:

Codes :

- (a) Both (A) and (R) are true and (R) is correct explanation of (A).
- (b) Both (A) and (R) are true but (R) is not the correct explanation of (A).

(c) (A) is true but (R) is false.

(d) (A) is false but (R) is true.

U.P. B.E.O. (Pre) 2019

Ans. (a)

Structural violence is differentiated from personal violence and refers to preventable harm or damage to persons where no actor is committing the violence or where it is not practical to search for such violence which emerges from the unequal distribution of power and resources or, in other words, is said to be built into the structure. Some of the forms of structural violence are Racism, untouchability, etc. Untouchability is an extremely disgusting aspect of the caste system. It constitutes extremely harsh social punishment against lowest castes on the scale of purity and impurity from religious and ritualistic point of view and untouchability also gets religious approval for this reason. So, both statements (A) and (R) are true, and (R) is the correct explanation of (A).

40. Which one of the following Articles of the Indian Constitution belongs to a different category:

- (a) Art. 14
- (b) Art. 15
- (c) Art. 16
- (d) Art. 19

U.P.P.C.S. (Pre) 2000

Ans. (*)

Among the given Articles, categorisation can be done in two ways. First way, Article 19 belongs to a different category as it comes in the category of the Right to Freedom. While the other three belong to the right to equality. Article 19 deals with the Protection of certain Rights such as
 19(i)(a) Freedom of speech and expression
 19(i)(b) To assemble peacefully and without arms
 19(i)(c) To form association or unions
 19(i)(d) To move freely throughout the territory of India
 19(i)(e) To reside and settle in any part of the territory of India
 19(i)(g) To practice any profession, or to carry any occupation, trade or business.
 The Second way, Article 14 belongs to a different category, as it is available to all persons (citizens and foreigners both). While, the other three Articles 15, 16 and 19 provide rights available only to a citizen and not to an alien.

41. In the Indian Constitution the 'Right to Freedom' is granted by four Articles which are –

- (a) Article – 19 to Article – 22
- (b) Article – 16 to Article – 19
- (c) Article – 17 to Article – 20
- (d) Article – 18 to Article – 21

U.P.P.C.S. (Mains) 2016

Ans. (a)

The right to freedom is granted in the Indian Constitution from (Arts. 19 -22), where Article 19 deals with the protection of certain rights including the right to freedom of speech, peaceful assembly for association or union, move freely, settle and reside, etc. Article 20 deals with protection in respect of conviction for offences, Article 21 deals with the right to life and personal liberty, Article 21-A deals with right to education, Article 22 deals with protection against arrest and detention in certain circumstances.

42. Which of the following freedoms is not guaranteed by the Indian Constitution under Article 19?

- (a) Freedom to assemble peacefully and without arms
- (b) Freedom to own, acquire and dispose of property
- (c) Freedom to move freely throughout the country
- (d) Freedom to practise any trade or profession

U.P.P.C.S. (Pre) 2024

Ans. (b)

The Article 19 (Protection of certain rights regarding freedom of speech, etc.) under fundamental rights mentioned in part III of the Constitution provides guarantee of the following 6 freedoms by clause (1) as the right-

- (a) to freedom of Speech and expression;
- (b) to assemble peaceably and without arms;
- (c) to form associations or unions or co-operative Societies
- (d) to move freely throughout the territory of India;
- (e) to reside and settle in any part of the territory of India; and
- (g) to practise any profession, or to carry on any occupation, trade or business.

It is noteworthy that, the freedom to own, acquire and dispose of a property was included in Article 19 clause (1) sub-clause (f) under the initial/original constitution, but the 44th Amendment of the Constitution, 1978 removed this sub clause (f) from the Article 19(1).

43. In which Article the Fundamental Rights to Freedom of Speech and Expression is provided in the Constitution of India?

- (a) Article 14
- (b) Article 19
- (c) Article 21
- (d) Article 22

Uttarakhand U.D.A./L.D.A. (Pre) 2007

Ans. (b)

See the explanation of the above question.

44. Which Article of the Constitution of India is related with Freedom of the Press.

- (a) Article 19
- (b) Article 20
- (c) Article 21
- (d) Article 22

47th B.P.S.C. (Pre) 2005

Ans. (a)

In the Indian Constitution, freedom of the Press is not given directly, but the Supreme Court held that the right to freedom of speech and expression [Article 19 (1)(a)] includes the right to freedom of the Press.

45. Which Article of the Constitution ensure the freedom of the Press?

- (a) Article 16
- (b) Article 19
- (c) Article 22
- (d) Article 31

**U.P.P.C.S. (Spl) (Mains) 2004
Chhattisgarh P.C.S. (Pre) 2005**

Ans. (b)

See the explanation of the above question.

46. Indian Constitution does not give right to freedom of the Press, but it is included in-

- (a) Article 19(1)(a)
- (b) Article 19(1)(b)
- (c) Article 19(1)(c)
- (d) Article 19(1)(d)

**Uttarakhand U.D.A./L.D.A. (Pre) 2001
U.P.U.D.A./L.D.A. (Pre) 2001**

Ans. (a)

Indian Constitution does not give directly the right to freedom of the Press, but it is included in Article 19(1)(a), which provides the right to freedom of speech and expression.

47. Freedom of News Papers in India-

- (a) Specially provided by Article 19(1)(a)
- (b) Is secured under Article 19(1)(b)
- (c) Secured by Article 361-A
- (d) Has origin by the enforcement of Rule of law

I.A.S. (Pre) 1994

Ans. (a)

Freedom of the Newspapers or Press is not directly provided by the Constitution but is included in Article 19(1)(a) as freedom of speech and expression. In the case of Sakal Papers Ltd. Vs. Union of India, 1961, the Supreme Court stated that the freedom of the Press is included in the freedom of speech and expression under Article 19(1)(a).

48. The Supreme Court has held that hoisting the National Flag atop the private buildings is a fundamental right of every citizen under:

- (a) Article 14 of the Constitution
- (b) Article 19(1)(a) of the Constitution
- (c) Article 21 of the Constitution
- (d) Article 25 of the Constitution
- (e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (b)

According to the Supreme Court of India, hoisting the national Flag atop the private buildings is a fundamental right of every citizen under Article 19 (1)(a) of the constitution. Article 14 guarantees equality before the law or the equal protection of the laws. Article 21 deals with the right to life and personal liberty. Article 25 provides for freedom of conscience and free profession, practice and propagation of religion.

49. As a part of the Right to Freedom, which one of the followings does not form part of “Freedom to Assemble Peaceably and Without Arms”?

- (a) Gherao officials not performing their duties
- (b) Peaceful assembly
- (c) People who assemble should not bear arms
- (d) State can make a law imposing reasonable restrictions on the exercise of this Right

Jharkhand P.C.S. (Pre) 2013

Ans. (a)

Article 19(1)(b) provides the freedom to assemble peaceably and without arms, and under Article 19(3), the state can impose reasonable restrictions on it in the interest of public order.

50. By which of the following grounds, a citizen’s freedom of expression may not be subjected to restriction?

- (a) Sovereignty of India (b) Public order
- (c) Contempt of Court (d) Unbecoming criticism
- (e) All of the above

Chhattisgarh P.C.S (Pre) 2013

Ans. (d)

The freedom of speech and expression may be restricted on the grounds of sovereignty and integrity of India, security of State, friendly relation with the foreign States, public order, decency or morality or contempt of court, defamation or Incitement to an offence as enumerated in Article 19(2).

51. Reasonable restrictions on 'Exercise of Freedom of Speech and Expression' under Article 19(2) are justified in the interest of which of the following conditions?

- | | |
|-----------------------------|-------------------------|
| I. Security of State | II. Defamation |
| III. Sedition | IV. Public order |

Select the correct answer :

- (a) Only I and II (b) Only II and III
- (c) Only I, II and IV (d) All of the above

Jharkhand P.C.S. (Pre) 2023

Ans. (c)

Reasonable restrictions on the Exercise of Freedom of Speech and Expression under Article 19(2) are justified in the interest of the sovereignty and integrity of India, the security of the state, friendly relations with foreign states, Public order, decency or morality, or in relation to contempt of court, defamation or incitement to an offence. Hence, option (c) is the correct answer.

52. Which Article of the Constitution of Indian Republic relates to the Protection of 'Life and Personal Liberty'?

- (a) Article 19 (b) Article 21
- (c) Article 20 (d) Article 22

Uttarakhand P.C.S. (Pre) 2016

Ans. (b)

Article 21 of the Indian Constitution is related to the Protection of 'Life and Personal Liberty'. Article 19 guarantees the protection of certain rights regarding the freedom of Speech etc. Article 22 is about the protection against arrest and detention in certain cases, and Article 20 is about the Protection with respect to conviction for offences.

53. In which Article of Indian Constitution Doctrine of Due Process of Law is included?

- (a) 11 (b) 16
- (c) 21 (d) 26

U.P.P.C.S. (Mains) 2014

Ans. (c)

Article 21 says that no person shall be deprived of his life or personal liberty except according to the procedure established by law.

54. Which Article of the Indian Constitution protects person’s right to travel abroad:

- (a) 14 (b) 19
- (c) 21 (d) None of the above

U.P.P.C.S. (Pre) 1997

Ans. (c)

In the case of Maneka Gandhi Vs. UOI, 1978, the Supreme Court held that the right to travel abroad is a fundamental right and is secured by Article 21.

55. Identify the incorrect statement regarding Judicial Interpretation of Article 21 after Supreme Court’s verdict in Maneka Gandhi Case, 1978.

- (a) The burden lies on the petitioner to prove that the procedure established by law which deprives him of his life or personal liberty is arbitrary.

- (b) 'Procedure established by law' is by and large synonymous with the 'Procedural, due process' as prevalent in the U.S.A.
- (c) Articles 21, 19 and 14 are not mutually exclusive.
- (d) The Right to Life' includes 'The Right to Live with Dignity'.
- (e) Question not attempted

Raj. P.C.S. (Pre) 2023

Ans. (a)

Judgement in the Maneka Gandhi case, 1978 was delivered on 25th January 1978. It was an immensely important judgment which widened the scope of Article 21. A 7-Judge bench unanimously delivered the judgement.

The statement (1) is not related to the judicial interpretation of Article 21 in the judgement of the Maneka Gandhi case verdict. Some of the features which are very important are as follows :

- Article 21 cannot allow an arbitrary or irrational process, 'Procedure established by law' is by and large synonymous with the procedural due process as prevalent in the U.S.A.
- Articles 14, 19 and 21 are not mutually exclusive.
- The 'Right to life' includes 'The Right to live with dignity'.
- The 'Right to travel abroad' is guaranteed under Article 21.
- Other important rights which were brought into the ambit of Article 21, are
 - Right to clean water
 - Right to clean air
 - Right to freedom from noise pollution
 - Right to livelihood
 - Right to speedy and fair trial
 - Right to food
 - Right to clean environment.

56. Which of the following has been recognized as a fundamental right by the Supreme Court of India?

1. Right to Shelter
2. Right to Travel Abroad
3. Right to Equal Pay for Equal Work

Select the correct answer from the code given below:

Code :

- (a) 1 and 2 (b) 2 and 3
(c) 1 and 3 (d) 1, 2 and 3

U.P.P.C.S. (Pre) 1998

Ans. (d)

In the case of Chameli Singh Vs. State of U.P. 1995, the Supreme Court has held that 'Right to Livelihood' under Article 21 also includes 'Right to Shelter'. It was further stated that the right to shelter does not mean a mere right to a roof over one's head but the right to all the infrastructure necessary to enable a person to live. The Supreme Court, in the case of Satwant Singh Vs. Union of India, held that the right to travel abroad is a fundamental right. In a landmark case of Randhir Singh Vs. Union of India, the supreme court held that "Construing Article 14 and 16 in the light of the Preamble and Article 39 (d) we are of the view that the principle 'Equal Pay for Equal Work' is deducible from those Articles and may be properly applied to the cases of unequal scales of pay based on no classification or irrational classification, though those, drawing the different scales of pay, do identical work under the same employer." Thus the correct answer is option (d).

57. Which one of the following rights is available under Article 19(1)(d) read with Article 21 :

- (a) Right to travel abroad
(b) Right to Shelter
(c) Right to privacy
(d) Right to information

U.P.P.C.S. (Mains) 2004

U.P.P.C.S. (Pre) 2003

U.P.U.D.A./L.D.A. (Pre) 2002

Ans. (c)

In the Govind vs state of M.P. and ANR (1975) and Malak Singh and others. vs. state of Punjab and Haryana and others. (1980), the Supreme Court held that the right to privacy is implicit under Article 21. This right is the right to be let alone. In the context of surveillance, it has been held that surveillance, if intrusive and seriously encroaches on the privacy of citizens, can infringe the freedom of movement guaranteed by Articles 19 (1) (d) and Article 21.

58. Right to Privacy is protected as an intrinsic part of Right to Life and Personal Liberty. Which of the following in the Constitution of India correctly and appropriately imply the above statement?

- (a) Article 14 and the provisions under the 42nd Amendment to the Constitution.
(b) Article 17 and the Directive Principles of State Policy in Part IV.
(c) Article 21 and the freedoms guaranteed in Part III.
(d) Article 24 and the provisions under the 44th Amendment to the Constitution.

I.A.S. (Pre) 2018

Ans. (c)

Justice K.S. Puttaswamy (Retd.) and others. Vs. Union of India, is a landmark judgment of the Supreme Court of India, which holds that the Right to Privacy is protected as a Fundamental Right under Article 21 of the Constitution of India. Hence, Option (c) is correct.

59. Under which of the following Articles of the Constitution of India, has the Supreme Court of India placed the Right to Privacy?

- (a) Article 15 (b) Article 16
(c) Article 19 (d) Article 21

I.A.S. (Pre) 2024

Ans. (d)

In Justice K.S. Puttaswamy (Retd.) & Anr. vs. Union of India and Ors. case, the Nine-Judge Constitution Bench of the Supreme Court in a landmark judgement on 24 August, 2017 unanimously ruled that privacy is a fundamental right, and that the right to privacy is protected as an intrinsic part of the right to life and personal liberty (Article 21), as a part of the freedoms guaranteed by Part III of the Constitution.

60. 'Right to Privacy' is protected under which Article of the Constitution of India?

- (a) Article 15 (b) Article 19
(c) Article 21 (d) Article 29

I.A.S. (Pre) 2021

Ans. (c)

See the explanation of the above question.

61. Which Article of the Constitution of India safeguards one's right to marry the person of one's choice?

- (a) Article 19 (b) Article 21
(c) Article 25 (d) Article 25

I.A.S. (Pre) 2019

Ans. (b)

In Lata Singh v/s State of U.P. 2006, The Supreme Court viewed the right to marry as a component of the right to life under Article 21 of the Indian constitution. In the Hadiya marriage case, the Supreme Court also said that the right to convert & choose a partner is implicit under Article 21 of the Constitution.

62. Which one of the following does not fall within the purview of article 21 of the Constitution?

- (a) Medical aid to injure by a doctor
(b) Sexual Harassment of Women at work place.
(c) Pollution of the quality of water.
(d) Capital punishment

U.P.P.C.S. (Pre) 2017

Ans. (d)

Article 21 of the Indian Constitution provides that –"No person shall be deprived of his life or personal liberty except according to the procedure established by law." Hon'ble Supreme Court of India has widened the scope and orbit of the right to life and personal liberty on various occasions. According to the question given here, option (d) is correct, as from the decision of Bachan Singh Vs. State of Punjab case, it is now clear that the provision of capital punishment, as given in section 302 of I.P.C., is not violative of Article 21 of the constitution, because it is given only for serious crimes. So, capital punishment doesn't come under the provision of Article 21 of the constitution. All the other rights given in the options come under the right to life and personal liberty, as it has been declared by the Supreme Court through following decisions as –
(i) Medical aid to injured by Doctor in Parmananda Katara Vs. Union of India 1989 S.C.
(ii) Sexual Harassment of women at workplace in Vishakha Vs. State of Rajasthan 1997 S.C.
(iii) Pollution of the quality of Air in Subhash Kumar Vs. State of Bihar 1991 S.C.

63. Which one of the following rights cannot be suspended or restricted even during National Emergency?

- (a) Right to reside and settle in any part of the country.
(b) Right to life and personal liberty.
(c) Right to move freely throughout the territory of India
(d) Right to carry on any profession or business.

U.P.P.C.S. (Mains) 2008

Ans. (b)

After the 44th Constitutional Amendment (1978), fundamental rights of life and Personal liberty (Art. 21) can not be suspended even during National Emergency. If the National Emergency is declared on the grounds of war or external aggression, the fundamental rights under Article 19 are automatically suspended. It cannot be suspended on the grounds of armed rebellion.

64. The scope of the Article 21 of the Constitution was expanded to include Right to Education, because of the decision of Supreme Court in the case

- (a) Unnikrishnan v/s Andhra Pradesh
(b) Govind v/s State of Madhya Pradesh
(c) Parmanand Katara v/s Union of India
(d) Chameli Singh v/s State of Uttar Pradesh

M.P.P.C.S. (Pre) 2019

Ans. (a)

The Supreme Court, in the case of 'Unnikrishnan and others versus State of Andhra Pradesh and others', 1993, organised in the form of a right, free education for children upto the age of 14 years. The court held that- The citizens of the country have the fundamental right to education. This right comes out of Article 21. However, the right is not absolute. The content and measures of the right must be determined in light of Articles 41 and 45.

65. Right to education to all children between the age group of 6 to 14 years is -

- (a) Included in the Directive Principles of State Policy
- (b) A Fundamental Right
- (c) A Statutory Right
- (d) None of the above

U.P.P.C.S. (Pre) 2006

Ans. (b)

The Constitution (Eighty-Sixth Amendment) Act, 2002 inserted Article 21-A in the Constitution of India to provide free and compulsory education to all children in the age group of six to fourteen years as a fundamental right in such a manner as the State may, by law, determine. The Right of Children to Free and Compulsory Education (RTE) Act, 2009, represents the legislation envisaged under Article 21-A. The RTE Act came into effect on 1 April, 2010.

66. When was the Right to Education added through the amendment in the Constitution of India?

- (a) 1st April, 2010
- (b) 1st August, 2010
- (c) 1st October, 2010
- (d) 1st December, 2010

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (a)

See the explanation of the above question.

67. Which one of the following is a human right as well as a fundamental right under the Constitution of India?

- (a) Right to Information
- (b) Right to Work
- (c) Right to Education
- (d) Right to Housing

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (c)

See the explanation of the above question.

68. Assertion (A) : The state shall provide free and compulsory education to all children of the age group of six to fourteen years.

Reason (R) : In a democratic society, right to education is indispensable in the interpretation of the right to development as a human right.

In the context of above statements select the correct answer.

Code :

- (a) Both (A) and (R) are true, and (R) is the correct explanation of (A).
- (b) Both (A) and (R) are true, but (R) is not the correct explanation of (A).
- (c) (A) is true, but (R) is false.
- (d) (R) is true, but (A) is true.

U.P.P.C.S. (Mains) 2016

Ans. (a)

According to Article 21(A) of the Indian Constitution, the state shall provide free and compulsory education to all children of the age of six to fourteen years. Thus, Assertion (A) is true. Education is a fundamental human right and is indispensable in the interpretation of the right to development as a human right, as it promotes individual freedom and empowerment of children. Thus, both (A) and (R) are true, and (R) is the correct explanation of (A).

69. Which of the following are envisaged by the Right against Exploitation in the Constitution of India?

- 1. Abolition of untouchability
- 2. Prohibition of human trafficking and forced labour
- 3. Prohibition of employment of children in factories and mines
- 4. Protection of interests of minorities

Select the correct answer from the codes given below :

- (a) 2 and 3
- (b) 3 and 4
- (c) 1 and 2
- (d) 1 and 4

I.A.S. (Pre) 2017

U.P.P.C.S. (Pre) 2024

Ans. (a)

Part III (Fundamental Rights) of the Indian Constitution mentions the Right against Exploitation under Articles 23 and 24. The Article 23 prohibits traffic in human beings and begar and other similar forms of forced labour. The Article 24 prohibits the employment of children below the age of fourteen years in any factory or mine or any other hazardous employment. Abolition of untouchability under Article 17 is under the right to equality. The Protection of the interest of minorities is mentioned in Article 29 as a Cultural and Educational Right, under the Constitution.

70. Which provision of the fundamental rights is directly related to the exploitation of children?

- (a) Art. 17 (b) Art. 19
(c) Art. 23 (d) Art. 24

U.P. P.C.S. (Mains) 2009

U.P.P.C.S. (Pre) 2005

Ans. (d)

Article 24 of the Constitution is related to the Right against exploitation of the children. This Article prohibits the employment of children under the age of 14 years in any factory, mines or engagement in any other hazardous employment.

71. Article 24 of the Constitution of India prohibits the employment of child in factories related to hazardous works. Such prohibition is

- (a) Absolute prohibition (b) Partial prohibition
(c) Reasonable prohibition (d) Moral prohibition

M.P.P.C.S. (Pre) 2020

Ans. (a)

As per Article 24, No child below the age of fourteen years shall be employed to work in any factory or mine or engaged in any other hazardous employment. Such prohibition is an absolute prohibition.

72. Which of the following is not a part of the Article 20 of the Constitution of India?

- (a) Double Jeopardy Clause
(b) Ex-post Facto Law
(c) Prohibition Against Torture
(d) Prohibition against Self Incrimination

U.P.P.C.S. (Pre.) 2023

Ans. (c)

Prohibition against torture is not part of the Article 20 of the Constitution of India. Protection from torture is a fundamental right enshrined under Article 21 of the Indian constitution. Article 20 of the Indian Constitution provides protection in respect of conviction for offences :

- (1) No person shall be convicted of any offence except for violation of the law in force at the time of the commission of the act charged as an offence, nor be subjected to a penalty greater than that which might have been inflicted under the law in force at the time of the commission of the offence.
(2) No person shall be prosecuted and punished for the same offence more than once.
(3) No person accused of any offence shall be compelled to be a witness against himself.

73. Which Article under the fundamental rights is directly related to the exploitation of children?

- (a) Article-19 (b) Article-17
(c) Article-23 (d) Article-24

U.P.P.C.S. (Mains) 2012

U.P.U.D.A./L.D.A. (Spl) (Pre) 2010

Ans. (d)

See the explanation of the above question.

74. Which one of the following Articles of the Constitution deals with the fundamental rights related to the exploitation of children?

- (a) 17 (b) 19
(c) 24 (d) 25

U.P.P.C.S. (Mains) 2011

U.P.P.C.S. (Pre) 2018

Ans. (c)

See the explanation of the above question.

75. Child Rights are protected in Article _____ of ICCPR.

- (a) 35 (b) 24
(c) 21 (d) 23

U.P.P.C.S. (Pre) 2013

Ans. (b)

Article 24 of ICCPR (International Convention on Civil and Political Rights) protects child rights. It is worth mention that Article 24 of the Indian Constitution also Protects Child rights.

76. Which Article of the Constitution provides protection to the accused regarding conviction from double-bar and self-incrimination?

- (a) Article 19 (b) Article 22
(c) Article 21 (d) Article 20

Uttarakhand P.C.S. (Pre) 2010

Ans. (d)

Article 20(2) says that no person shall be prosecuted and punished for the same offence more than once, while Article 20(3) describes that no person accused of any offence should be compelled to be a witness against himself.

77. An accused of any offence cannot be compelled to be a witness against himself, which Article of Indian Constitution provides for this ?

- (a) Article 20(3) (b) Article 21
(c) Article 22 (d) Article 74

U.P. Lower Sub. (Spl) (Pre) 2004

Ans. (a)

Article 20 has provided a safeguard to the persons accused of crimes. Article 20(3) of the Constitution says that no person accused of any offence shall be compelled to give witness against himself (self-incrimination). This is based on the legal presumption that the accused is innocent till his guilt is proved. It is the duty of the prosecutor to establish his guilt.

78. “No person shall be prosecuted and punished for the same offence more than once.” Under which Article, the above preservation of conviction for crime is given?

- (a) Article 19 (b) Article 20
(c) Article 21 (d) Article 22

U.P.U.D.A./L.D.A. (Spl) (Pre) 2010

Ans. (b)

Article 20(2) of the Constitution of India says that no person shall be prosecuted and punished for the same offence more than once. This is called the ‘Doctrine of Double Jeopardy.’ The objective of this Article is to avoid harassment, which may be caused by successive criminal proceedings where the person has committed one crime. There is a law maxim related to this -Nemo Debet Bis Vexari. This means that no man shall be put twice in peril for the same offence.

79. Which Article gives safeguard to the Fundamental Rights of arrested person?

- (a) Article 15 (b) Article 17
(c) Article 21 (d) Article 22

U.P.P.C.S. (Mains) 2013

Ans. (d)

Article 22 of the Constitution mentions that no arrested person shall be detained in custody without being informed as soon as may be, of the grounds for such arrest, nor shall he be denied the right to consult and to be defended by a legal practitioner of his choice.

80. Which of the following is not correctly matched?

- (a) Article 22.1 – Right to be defended by a legal practitioner of her or his choice.
(b) Article 22.4 – No law providing for preventive detention shall authorise the detention for a period longer than three months.
(c) Article 22.2 – Parliament may by law prescribe the circumstances under which a person may be detained for a period longer than three months.

- (d) Article 22.1 – No person who is arrested shall be in custody without being informed, as soon as may be, of the ground for such arrest.

Jharkhand P.C.S. (Pre) 2021

Ans. (c)

As per **Article 22(2)**, Every person who is arrested and detained in custody shall be produced before the nearest magistrate within a period of twenty-four hours of such arrest, excluding the time necessary for the journey from the place of arrest to the court of the magistrate.

81. Under the Preventive Detention Act, a person can be arrested without trial for –

- (a) 1 month (b) 3 months
(c) 6 months (d) 9 months

U.P. Lower Sub. (Pre) 2013

Ans. (b)

Article 22(4) of the Constitution of India says that no law providing for preventive detention shall authorize the detention of a person for a longer period than three months.

82. Under Preventive Detention, a person can be detained without trial for –

- (a) One month (b) Three months
(c) Six months (d) Nine months

U.P.P.C.S. (Mains) 2009

Ans. (b)

According to Article 22(4) of the Indian Constitution, a person can be detained without trial maximum for a period of three months under preventive detention.

83. Consider the following statements:

1. According to the Constitution of India, the Central Government has a duty to protect States from internal disturbances.
2. The Constitution of India exempts the States from providing legal counsel to a person being held for preventive detention.
3. According to the Prevention of Terrorism Act, 2002, confession of the accused before the police cannot be used as evidence.

How many of the above statements are correct?

- (a) Only one (b) Only two
(c) All three (d) None

I.A.S. (Pre.) 2023

Ans. (a)

Article 355 of the Indian Constitution provides that it shall be the duty of the Union to protect every State against external aggression and internal disturbance and to ensure that the government of every State is carried on in accordance with the provisions of this Constitution. Hence, statement I is correct. Article 22 of the Constitution provides protection against arrest and detention in certain cases. Clause (5) of this Article says that when any person is detained in pursuance of an order made under any law providing for preventive detention, the authority making the order shall, as soon as may be possible communicate to such person the grounds on which the order has been made and shall afford him the earliest opportunity of making a representation against the order. Thus, Article 22(5) provides a legal opportunity to the detainee. Hence statement II is not correct. As per the Prevention of Terrorism Act, 2002 (repealed in 2004), a confession made by a person before a police officer and recorded by that police officer either in writing or on any mechanical or electronic device shall be admissible in the trial of such person for an offence under this Act. Hence statement III is also incorrect.

84. With reference to India, consider the following statements :

- 1. When a prisoner makes out a sufficient case, parole cannot be denied to such prisoner because it becomes a matter of his/her right.**
- 2. State Governments have their own Prisoners Release on Parole Rules.**

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only
(c) Both 1 and 2 (d) Neither 1 nor 2

I.A.S. (Pre) 2021

Ans. (b)

Parole is the release of a prisoner, either temporarily for a special purpose or completely before the expiry of a sentence, on the promise of good behaviour; such a promise is known as a word of honour provided in the parole order. Parole is not recognized as a right in India, despite the fact that it has administrative importance. A prisoner's claim to parole

is not absolute, and prison authorities have considerable discretion in granting parole to that prisoner. However, parole is considered a right for prisoners by a number of international accords and organizations.

The grant of parole is governed by rules made under the Prison Act, 1894 and the Prison Act, 1900. Many State governments have also formulated guidelines to bring out objectivity and facilitate decision-making to determine whether parole needs to be granted in a particular case or not. Such decisions are taken in accordance with guidelines framed from time to time. The Prisons (Bombay Furlough and Parole) Rules, 1959, have been enacted by exercising rule-making power under section 59(5) of the Prisons Act, 1984. Hence statement 1 is wrong and 2 is correct.

85. The provision of 'Right to Freedom of Religion' includes-

- (I) Freedom of propagation of religion
(II) Right to wear and carry 'Kripans' by Sikhs
(III) State's right to make laws for social reforms
(IV) Right to conversion of religion of people by religious bodies

Choose the correct answer from given codes:

Code :

- (a) I, II and III (b) II, III and IV
(c) III and IV (d) All of above

U.P.U.D.A./L.D.A. (Pre) 2001

Ans. (a)

Article 25 of the Constitution provides freedom of conscience and free profession, practice and propagation of religion, and also the right of the State to make any law for social reforms. Carrying and wearing of 'Kripans' by Sikhs is deemed as the right to freedom of religion by virtue of Explanation-I of the Article 25. The right to conversion of religion by religious bodies or institutes is not provided under this Article.

86. Under which Article of Indian Constitution wearing of 'Kirpans' by Sikh is deemed as a right to freedom of religion?

- (a) Article 24 (b) Article 25
(c) Article 26 (d) Article 27

Jharkhand P.C.S. (Pre) 2003

Ans. (b)

See the explanation of the above question.

87. Article 25 of the Indian Constitution refers to –

- (a) Right to Equality
- (b) Right to Property
- (c) Freedom of Religion
- (d) Protection of Minorities

U.P.P.C.S. (Pre) 1996

Ans. (c)

See the explanation of the above question.

88. The word 'Hindu' in Article 25 of the Constitution of India does not include –

- (a) Buddhists
- (b) Jains
- (c) Parsis
- (d) Sikhs

U.P.P.C.S. (Mains) 2014

Uttarakhand P.C.S. (Mains) 2006

Ans. (c)

According to Article 25, Hindus shall be construed as including persons professing the Sikh, Jain or Buddhist religion, but they do not include Parsis.

89. According to Article 25 of the Constitution 'Right to Freedom of Religion' is *not* subjected to –

- (a) Public Order
- (b) Health
- (c) Morality
- (d) Humanism

R.A.S./R.T.S. (Pre) 2013

Ans. (d)

According to Article 25 of the Indian Constitution, all persons are equally entitled to freedom of conscience and the right to freely profess, practice and propagate religion, but these rights have certain limitations imposed on the grounds of public order, morality and health. Humanism is not a limitation imposed under Article 25.

90. What are the restrictions in the freedom to manage religious affairs in the Article 26 of the constitution ?

- (i) Public Order
- (ii) National Security
- (iii) Education
- (iv) Morality
- (v) Health
- (vi) Secularism

- (a) (i) (ii) (iii)
- (b) (ii) (iii) (v)
- (c) (ii) (iv) (vi)
- (d) (i) (iv) (v)

Chhattisgarh P.C.S. (Pre) 2018

Ans. (d)

Article 26- Every religious denomination or any of its sections shall have the right to,

- (a) establish and maintain an institution for religious & charitable purposes.
- (b) manage its own affairs in matters of religion.
- (c) own & acquire movable and immovable property &
- (d) administer such property in accordance with law.

The rights under Article 26 are also subject to public order, morality & health but not subject to other restrictions related to the fundamental rights.

91. Which one of the following is not correctly matched?

- (a) Article 23 - Prohibition of traffic in human and forced labour
- (b) Article 24 - Prohibition of employment of children in factories
- (c) Article 26 - Freedom to manage religious affairs
- (d) Article 29 - Freedom of establishment and administration of educational institutions by minorities

U.P. Lower Sub. (Pre) 2009

Ans. (d)

Freedom to establish and administer educational institutions by the minorities is given under Article 30, while Article 29 is related to the protection of the interest of minorities. The rest of the options are correctly matched.

92. Which one of the following pairs is not correctly matched?

- (a) Prohibition of traffic in human beings and forced labour - Article 23
- (b) Protection of interests of minorities - Article 29
- (c) Right to constitutional remedies - Article 32
- (d) Right of minorities to establish and administer educational institutions - Article 31

U.P.P.C.S. (Mains) 2015

Ans. (d)

The right of minorities to establish and administer educational institutions is provided under Article 30, while Article 31 was for compulsory acquisition of property which has been repealed by the 44th Constitutional Amendment Act, 1978 and now the right to property is a legal right under Article 300-A in part XII of the constitution.

93. Which Article of the Constitution protects the 'Right of minorities to establish and administer educational institutions of their choice'?

- (a) 19 (b) 26
(c) 29 (d) 30

U.P.P.C.S. (Pre) 1997

Ans. (d)

Article 19- Right to Freedom
Article 26- Freedom to manage religious affairs
Article 29 - Protection of interest of minority community.
Article 30 - Right of minorities to establish and administer educational institutions.

94. Under which of the following Articles of the Indian Constitution, it has been provided that all minorities shall have the right to establish and administer educational institutions of their choice?

- (a) Art. 28 (b) Art. 29
(c) Art. 30 (d) Art. 31

U.P. P.C.S. (Mains) 2017

Ans. (c)

See the explanation of the above question.

95. Given below are two statements, one is labelled as Assertion (A) and the other as Reason (R).

Assertion (A) : Article 30 of the Constitution of India does not define the term 'minorities.'

Reason (R) : The Constitution recognises only linguistic and religious minorities.

Select the correct answer from the codes given below:

Codes :

- (a) Both (A) and (R) are true and (R) is the correct explanation of (A).
(b) Both (A) and (R) are true, but (R) is not the correct explanation of (A).
(c) (A) is true, but (R) is false.
(d) (A) is false, but (R) is true.

U.P.P.C.S. (Pre) 2019

Ans. (b)

Article 30 of the Indian Constitution provides for the right of minorities to establish and administer educational institutions. All minorities, whether based on religion or language, shall have the right to establish and administer educational institution of their choice [Article 30(1)]. According to Article 30(2), the state shall not, in granting aid to educational

institutions, discriminate against any educational institution on the grounds that it is under the management of a minority community whether based on religion or language. So, it is clear that 'Minority' is not defined in this Article. Hence, both the statements are correct but, Reason (R) is not the correct explanation of Assertion (A).

96. The Constitution of India recognizes –

- (a) Only religious minorities
(b) Only linguistic minorities
(c) Religious and linguistic minorities
(d) Religious, linguistic and ethnic minorities

I.A.S. (Pre) 1999

Ans. (c)

The Constitution of India recognizes both religious and linguistic minorities. According to Article 29, citizens residing in the territory of India having a distinct language, script, or culture of its own shall have the right to conserve the same. Article 30 provides minorities the right to establish and administer educational institution whether based on religion or language.

97. Which of the following is given the power to enforce the Fundamental Rights by the Constitution?

- (a) All Courts in India
(b) The Parliament
(c) The President
(d) The Supreme Court and High Courts

47th B.P.S.C. (Pre) 2005

Ans. (d)

Article 13 of the Constitution grants the power of Judicial Review to the Supreme Court, and High Courts in the case of violation of the Fundamental Rights. The Supreme Court (Art.32) and High Court (Art.226) in exercising their power, may declare any law or enactment passed by the Legislature, void or unconstitutional, on the ground of contravention to the Fundamental Rights.

98. The Guardian of Fundamental Rights is

- (a) Judiciary (b) Executive
(c) Parliament (d) None of these

U.P.P.C.S. (Mains) 2010

Ans. (a)

The Constitution of India has assigned Judiciary, i.e. the Supreme Court of India and the High Courts, the responsibility of the protection of fundamental rights. The most significant of fundamental rights is the exclusive right to the constitutional remedies under Art. 32 and 226 of the Constitution of India. Thus, the Guardian of fundamental rights is the Judiciary.

99. Under the Indian Constitution who is the guardian of the fundamental rights?

- (a) Parliament (b) President
(c) Supreme Court (d) Cabinet

U.P.P.C.S. (Pre) 1992

U.P. Lower Sub. (Pre) 2004

Ans. (c)

See the explanation of the above question.

100. Under the Indian Constitution who amongst the following is considered to be the guardian of the fundamental rights?

- (a) Parliament (b) President
(c) Judiciary (d) Prime Minister

U.P. P.C.S. (Mains) 2012

U.P.P.C.S. (Mains) 2015

Ans. (c)

See the explanation of the above question.

101. Which one of the following is regarded as the protector of fundamental rights of citizens and Guardian of the Constitution of India?

- (a) The Parliament (b) The Attorney General
(c) The Supreme Court (d) The President

U.P. Lower Sub. (Pre) 2015

Ans. (c)

The Supreme Court of India is the protector of the fundamental rights of citizens and the Guardian of the Constitution of India because, through the right to constitutional remedies (Art. 32), it protects the fundamental rights of citizens. Besides, it interprets as well as enforces the provisions of the Constitution.

102. Which one of the following statements is not correct?

- (a) K.M. Munshi was one of the members of the drafting committee of the Constitution.
(b) The Constitution of India was adopted by the Constituent Assembly.
(c) The Panchayati Raj was recommended by Balwant Rai Mehta Committee Report-1957.
(d) The President of India is the Guardian of Fundamental Rights under the Constitution.

U.P. Lower Sub. (Pre) 2013

Ans. (d)

All the given statements are correct, except (d), as the Judiciary (The Supreme Court and the High Courts) is the guardian of fundamental rights, not the President.

103. Which of the following rights can be enforced under Article 32 of the Indian Constitution?

- (a) Constitutional Rights (b) Fundamental Rights
(c) Statutory Rights (d) All of the above

U.P.P.C.S. (Pre) 1997

Ans. (b)

Article 32 of the Constitution provides constitutional remedies against the violation or transgression of fundamental rights, conferred by Part III. The Supreme Court shall have the power to issue directions or orders or writs, including writs like Habeas Corpus, Mandamus, Prohibition, Quo Warranto, and Certiorari, whichever may be appropriate, for the enforcement of any of the rights conferred by Part-III. That is why the Supreme Court has been called as the Guardian of Fundamental Rights.

104. Which of the following Article is called the "Heart and Soul" of the Indian Constitution?

- (a) Article 32 (b) Article 14
(c) Article 15 (d) Article 19

Chhattishgarh P.C.S. (Pre) 2024

Ans. (a)

Dr. B.R. Ambedkar described Article 32 of the Indian Constitution as its "heart and soul" because it safeguards fundamental rights and ensures justice for all citizens. This article empowers individuals to directly approach the Supreme Court if their fundamental rights are violated, ensures that the government respects individual freedoms and establishes the protection of fundamental rights as a fundamental right itself.

105. Which one of the following rights was described by Dr. B.R. Ambedkar as the 'Heart and Soul of the Constitution'?

- (a) Right to Freedom of Religion
(b) Right to Property
(c) Right to Equality
(d) Right to Constitutional Remedies

U.P. P.S.C. (GIC) 2010

U.P.P.C.S. (Spl) (Mains) 2004

I.A.S. (Pre) 2002

U.P.U.D.A./L.D.A. (Spl) (Pre) 2010

Ans. (d)

Dr. Bhimrao Ramji Ambedkar described Article 32 as the Heart and Soul of the Indian Constitution. In his words- “If I was asked to name any particular Article in this Constitution as the most important, an Article without which the Constitution would be a nullity, I could not refer to any other Article except this one (Article 32). It is the very soul of the Constitution and the heart of it.” It is also notable that on various occasions, the Preamble to the Constitution is also recognized as the Soul of the Constitution, but according to Dr. Ambedkar, Article 32 is the Heart and soul of the Constitution.

106. Consider the following statements:

Assertion (A): Dr. Ambedkar had described Article 32 of the Constitution as the very soul of it.

Reason (R) : Article 32 provides an effective remedy against the violation of fundamental rights.

Select the correct answer using the codes given below:

Code :

- (a) (A) and (R) both are true, and (R) is the correct explanation of (A)
- (b) (A) and (R) both are true, but (R) is not the correct explanation of (A).
- (c) (A) is true, but (R) is false.
- (d) (A) is false, but (R) is true.

U.P.P.C.S. (Pre) 2016

Ans. (a)

Dr. Ambedkar had described Article 32 as “the very soul and the heart of the Constitution” as Article 32 provides an effective remedy against the violation of fundamental rights enshrined in the Indian Constitution. The Supreme Court has the power to issue directions, orders or writs for the enforcement of any of the fundamental rights. Thus, (A) and (R) both are true, and (R) is the correct explanation of (A).

107. Consider the following statements concerning the powers of the Supreme Court to issue certain writs to stop violation of Fundamental Rights-

- (1) The Supreme Court has power to issue writs like Habeas Corpus, Mandamus, Prohibition, Quo Warranto and Certiorari which is appropriate for the enforcement of Fundamental Rights.**

- (2) Parliament may by law empower any other court to exercise within its jurisdiction the powers given to Supreme Court.**

Which of the above mentioned statement/statements is/are correct?

Select the correct answer from the code given below :

Code :

- (a) Neither (1) nor (2)
- (b) Only (1)
- (c) Only (2)
- (d) Both (1) and (2)

U.P.P.C.S. (Pre.) 2023

Ans. (d)

Article 32(2) of the Constitution gives an extensive original jurisdiction to the Supreme Court in regard to the enforcement of Fundamental Rights. It is empowered to issue directions, orders or writs, including writs in the nature of habeas corpus, mandamus, prohibition, quo warranto and certiorari, to enforce them. As per Article 32(3), Without prejudice to the powers conferred on the Supreme Court by clause (2), Parliament may by law empower any other court to exercise within the local limits of its jurisdiction all or any of the powers exercisable by the Supreme Court under clause (2). Hence, both statements are correct and option (d) is the correct answer.

108. Under which of the following Article of the Constitution of India, the Supreme Court is empowered to issue different 'Writs' for the enforcement of Fundamental Rights of the citizens?

- (a) Article 32
- (b) Article 33
- (c) Article 132
- (d) Article 226

Jharkhand P.C.S. (Mains) 2016

Ans. (a)

Article 32 of the Constitution of India, empowered the supreme court to issue different writs for the enforcement of fundamental rights of citizens. These writs are Habeas corpus, Mandamus, Prohibition, Certiorari and Quo-Warranto. Article 226 empowers a High Court to issue these five writs for the enforcement of Fundamental rights and for any other purpose.

109. Which one of the following writs is regarded as the greatest safeguard for the liberty of a person?

- (a) Mandamus
- (b) Habeas Corpus
- (c) Certiorari
- (d) Prohibition

U.P. Lower Sub. (Pre) 2015

Ans. (b)

The Writ of Habeas Corpus is regarded as the greatest safeguard of the liberty of a person. It calls upon the person who has detained another to produce the latter before the court, to let the court know on what grounds he has been confined, and to set him free if there is no legal justification for the imprisonment.

110. Which one of the following writs can be issued by a High Court to secure the liberty of the individual?

- (a) Mandamus
- (b) Quo-warranto
- (c) Habeas Corpus
- (d) Prohibition

U.P.P.C.S. (Pre) (Re. Exam) 2015

Ans. (c)

Article 226 of the Indian Constitution provides for the power of the High Courts to issue certain writs. To secure the liberty of the individual, the High Court can issue a writ of Habeas Corpus. The writ is issued by the Court, whose object is to secure the release of a person found to be detained illegally and secure the liberty of the individual. The Supreme Court also has the power to issue writs under Article 32 of Indian Constitution for the rights enumerated in Part III of the Constitution, i.e., Fundamental Rights whereas the High Court can issue writs related to legal rights also.

111. The writ which may be filed for protection of right to Personal Freedom is -

- (a) Mandamus
- (b) Quo-warranto
- (c) Habeas Corpus
- (d) Certiorari

M.P.P.C.S. (Pre) 1993

Ans. (c)

The word 'Habeas Corpus' literally means 'to have the body of.' By this writ, the court secures the body of a person who has been imprisoned or detained to be brought before the court to obtain knowledge of the reason or grounds for such detention and to do justice. This writ secures the right of personal liberty.

112. Match it .

- | | |
|-------------------------|--------------------------------------|
| A. Habeas Corpus | i. Be more fully informed |
| B. Mandamus | ii. By which authority |
| C. Prohibition | iii. We command |
| D. Certiorari | iv. Let us have the body |
| E. Quo-Warranto | v. Writ to Subordinate Courts |

- | | A | B | C | D | E |
|-----|-----|-----|-----|-----|----|
| (a) | ii | iv | v | iii | i |
| (b) | iv | iii | v | ii | i |
| (c) | iv | iii | v | i | ii |
| (d) | iv | v | iii | i | ii |
| (e) | iii | ii | i | v | iv |

Chhattisgarh P.C.S. (Pre) 2016

Ans. (c)

The match is as follows :

Habeas Corpus	-	Let us have the body
Mandamus	-	We command
Prohibition	-	Writ to subordinate courts
Certiorari	-	Be more fully informed
Quo-Warranto	-	By which authority

113. Which of the following is NOT correctly matched?

- (a) Habeas corpus 'To have body of'
- (b) Mandamus 'We command'
- (c) Prohibition 'To be certified'
- (d) Quo-warranto 'By what authority'

U.P. P.C.S. (Pre) 2019

Ans. (c)

'To be certified' is related to certiorari writ, not to the prohibition. This writ is issued by a court higher in authority to a lower court of tribunal ordering them either to transfer a case pending with them to itself or quash their order in a case.

114. Which one of the following constitutional remedies is also known as 'postmortem'?

- (a) Prohibition
- (b) Mandamus
- (c) Certiorari
- (d) Quo warranto
- (e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (c)

In the certiorari writ, the Supreme Court and the High Court re-examine the decision given by the Subordinate Courts. Through the Quo warranto writ the court enquires into the Legality of a claim of a person to a public office. This writ prevents the illegal assumption of a public office by an individual. Therefore, both the writs have a sense of postmortem. Thus the appropriate answer for this question should be (e), while the Bihar public service commission has mentioned option (c) as the correct answer.

115. In which petition, Judiciary orders Executives to perform their duty?

- (a) Habeas Corpus (b) Mandamus
(c) Prohibition (d) Quo-Warranto

U.P.U.D.A./L.D.A. (Pre) 2001

Ans. (b)

A writ of Mandamus (which means “we command” in Latin), or sometimes mandate, is the name of one of the prerogative writs in the common law. It is “issued by a superior court to compel a lower court or a Government officer to perform mandatory or purely ministerial duties correctly.

116. When the Supreme Court issues a writ to a person or to an institution to perform its duty, it is called

- (a) Certiorari (b) Mandamus
(c) Quo Warranto (d) Habeas Corpus

U.P.P.C.S. (Mains) 2007

Ans. (b)

See the explanation of the above question.

117. Correctly match the following :

- | (I) | (II) |
|-------------------------------------|---------------------|
| A. Cultural and Educational Rights | (i) Articles 14-18 |
| B. Right to Constitutional Remedies | (ii) Articles 23-24 |
| C. Right against Exploitation | (iii) Articles 32 |
| D. Right to Equality | (iv) Articles 29-30 |

Code :

- | A | B | C | D |
|-----------|-------|------|------|
| (a) (iv) | (iii) | (i) | (ii) |
| (b) (iii) | (iv) | (ii) | (i) |
| (c) (iii) | (iv) | (i) | (ii) |
| (d) (iv) | (iii) | (ii) | (i) |

Chhattisgarh P.C.S. (Pre) 2022

Ans. (d)

The Correct matches are as follows,

- | | |
|-------------------------------------|---------------------|
| A. Cultural and Educational Rights | (iv) Articles 29-30 |
| B. Right to Constitutional Remedies | (iii) Articles 32 |
| C. Right against Exploitation | (ii) Articles 23-24 |
| D. Right to Equality | (i) Articles 14-18 |

118. Match List-I (Article of Indian Constitution) with List-II (Provisions) and select the correct answer using the code given below the lists:

List - I (Article of Indian Constitution)

- | | |
|-------------------|-------------------|
| A. Article 16 (2) | B. Article 29 (2) |
| C. Article 30 (1) | D. Article 31 (1) |

List - II (Provisions)

- No person shall be deprived of his property save by the authority of law.
- No person can be discriminated against in the matter of public appointment on the ground of race, religion or caste.
- All minorities whether based on religion or language shall have right to establish and administer educational institutions of their choice.
- No citizen shall be denied admission into any educational institution maintained by the State, or receiving State aid, on the grounds of religion, race, caste, language or any of them.

Code :

- | | A | B | C | D |
|-----|---|---|---|---|
| (a) | 2 | 4 | 3 | 1 |
| (b) | 3 | 1 | 2 | 4 |
| (c) | 2 | 1 | 3 | 4 |
| (d) | 2 | 4 | 2 | 1 |

I.A.S. (Pre) 2002

Ans. (a)

Article 16 (2)- No person can be discriminated against in the matter of public appointment on the grounds of race, religion or caste.

Article 29 (2)- No person shall be denied admission into any educational institution maintained by the State, or receiving State aid, on the grounds of religion, race, caste, language or any of them.

Article 30 (1)- All minorities, whether based on religion or language shall have the right to establish and administer educational institutions of their choice.

Article 31 (1)- No person shall be deprived of his property save by the authority of law.

119. Which of the following is NOT correctly matched?

- | Fundamental Right | Article |
|---|---------|
| (a) Abolition of Untouchability | Art. 17 |
| (b) Protection against arrest and detention | Art. 23 |
| (c) Freedom of Religion | Art. 25 |
| (d) Protection of Interest of Minorities | Art. 29 |

U.P. R.O./A.R.O. (Pre) (Re-Exam) 2016

Ans. (b)

The correctly matched order is as follows :

- | Fundamental Right | Article |
|--|---------|
| Abolition of Untouchability | Art. 17 |
| Protection against arrest and detention in certain cases | Art. 22 |
| Freedom of Religion | Art. 25 |
| Protection of Interests of Minorities | Art. 29 |

120. Match list-I with List-II and select the correct answer from the code given below :

List - I	List - II
(A) Abolition of Titles	(i) Article 29
(B) Freedom to manage Religious Affairs	(ii) Article 21-A
(C) Protection of Language of Minorities	(iii) Article 18
(D) Right to Education	(iv) Article 26

Code :

A	B	C	D
(a) (iii)	(ii)	(i)	(iv)
(b) (iv)	(iii)	(ii)	(i)
(c) (ii)	(iii)	(iv)	(i)
(d) (iii)	(iv)	(i)	(ii)

**R.A.S./R.T.S. (Pre) 2016
U.P.B.E.O. (Pre) 2019**

Ans. (d)

The matched order of both the list is as follows :		
Abolition of Titles	-	Article 18
Freedom to manage Religious Affairs	-	Article 26
Protection of Language of Minorities	-	Article 29
Right to Education	-	Article 21-A

121. Match List-I with List-II and select the correct answer by using the code given below the list:

List-I

- A. Fundamental Duties**
- B. Parliament can amend Fundamental Rights**
- C. Doctrine of Basic Structure**
- D. Prohibition of Trafficking in Human Beings**

List-II

- 1. Minerva Mills Case**
- 2. Article 23 of the Constitution**
- 3. 42nd Amendment of the Constitution**
- 4. Keshvanand Bharti Case**

Code :

A	B	C	D
(a) 3	4	1	2
(b) 4	3	2	1
(c) 2	1	4	3
(d) 1	2	3	4

U.P.P.C.S. (Mains) 2007

Ans. (a)

The matched order of list-I and list-II is as follows:

Fundamental Duties- 42nd Amendment of the Constitution
Parliament can amend Fundamental Rights- Keshvanand Bharti Case
the Doctrine of Basic Structure- Minerva Mills Case
Prohibition of Trafficking in Human Being - Article 23 of the Constitution.

122. Which of the following statement/s is/are incorrect?

- A. Part III on Fundamental Rights of the Constitution is based upon Bill of Rights of the U.S.A.**
- B. "Right to Die" is a Fundamental Right under Article 21 of the Constitution.**
- C. Indian Constitution is a complete Federal Constitution.**
- D. Fundamental Rights can be removed under the Indian Constitution.**

Code :

- (a) Only B, C and D
- (b) Only C and D
- (c) Only B and C
- (d) Only B

U.P.R.O./A.R.O. (Pre) 2023

Ans. (a)

In Philosophical and conceptual sense, the fundamental rights of the Indian Constitution are similar to the Bill of Rights of the USA. Significantly, Right to Die is not the fundamental Right under Article 25 of the Constitution. Notably, the Indian Constitution is not a complete federal constitution but quasi federal. According to the law established by the apex court of India, F.R. can be amended but not removed because it comes under the basic structure of the Indian Constitution.

123. In which of the following cases did the Supreme Court of India declare the prevalence of Fundamental rights over Directive Principles of the State Policy in case of conflict between the two?

- (a) Golaknath v. State of Punjab (1967)
- (b) The State of Madras v. Champakam Dorairajan (1951)
- (c) Kesavananda Bharati v. the State of Kerala (1973)
- (d) Minerva Mills v. the Union of India (1980)

M.P.P.C.S. (Pre) 2024

Ans. (b)

In the State of Madras Vs Champakam Dorairajan (1951) case, the Supreme Court of India held that, in the case of conflict between these two, the fundamental right shall prevail over the Directive Principles of State policy. It is notable that the state of Madras issued orders for community-based reservation for Medical College seats, in the furtherance of Article 46 of the Directive Principles of State Policy.

The said order was challenged on the grounds of violation of fundamental rights under Article 15(1) and Article 29(2). The Supreme Court in its decision hailed the superiority of the fundamental rights over the directive principles and cancelled the Madras government's order of community based reservation. To remove the effect of this decision the First Constitutional Amendment Act, 1951 added clause (4) to the Article 15 under fundamental rights. This clause (4) of Article 15 established that, nothing in Article 15 or clause (2) of Article 29 shall prevent the state from making any provision for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes and Scheduled Tribes.

124. By which of the following case Parliament got the right to amend Fundamental Rights?

- (a) Keshvananda Bharati Case
- (b) Rajnarayan Vs. Indira Gandhi Case
- (c) Golaknath's Case
- (d) Sajjan Singh Case

M.P.P.C.S. (Pre) 1991

Ans. (a)

The first time, the Supreme Court held that fundamental rights are amendable, was in the case of Shankari Prasad Vs. Union of India (1951) and Sajjan Singh Vs. Rajasthan State (1965). In the Golaknath case (1967), the prior decision was reversed, and it was held that amendment in fundamental rights is not possible. Again in the Keshvananda Bharati case 1973, the Supreme Court held that the amendment power of the Parliament is wide enough but not unlimited. It may amend fundamental rights but not in such way so as to destroy the Basic Structure of the Constitution. This case outlined the power of the parliament to amend the fundamental rights without destroying the basic structure of the Constitution.

125. Identify the correct chronological sequence of the following :

1. Shankari Prasad vs. Union of India
2. Sajjan Singh vs. State of Rajasthan
3. Golaknath vs. State of Punjab
4. Kesavananda Bharati vs. State of Kerala

Select the correct answer from the codes given below :

- (a) 1, 4, 3, 2
- (b) 3, 2, 1, 4
- (c) 1, 2, 3, 4
- (d) 3, 4, 2, 1

U.P.P.C.S. (Pre) 2024

Ans. (c)

The Supreme Court, firstly in year 1951 in the case of Shankari Prasad Vs. Union of India and after that in year 1965 in the case of Sajjan Singh Vs. State of Rajasthan, held that the parliament can amend the fundamental rights given under the Constitution Later, in year 1967 in the case of

Golaknath Vs. State of Punjab, the Supreme Court held the opposite to its verdict in Shankari Prasad and Sajjan Singh cases, and established that the parliament can not amend the fundamental rights.

In Keshavanand Bharati Vs. State of Kerala case, 1973, the Supreme Court held that the Parliament has an extensive power of amendment in the constitution, but the power is not unlimited, and it can amend the fundamental rights but it can not change or amend the Basic Structure of the Constitution.

126. The Supreme Court of India has propounded the 'Doctrine of Basic Structure' of the Constitution in which of the following cases?

- (a) Golaknath Vs. Punjab State
- (b) Sajjan Singh Vs. Rajasthan State
- (c) Keshavananda Bharati Vs. Kerala State
- (d) Shankari Prasad Vs. Indian Union

U.P. Lower Sub. (Pre) 2013

Ans. (c)

The doctrine of the basic structure of the Constitution owes its evolution to the majority judgment of the Supreme Court in the landmark case, Keshvananda Bharati Vs. State of Kerala (1973), which was approved in Minerva Mills Vs. Union of India (1980) case.

127. Which one of the following cases outlined the basic structure doctrine of the Indian Constitution?

- (a) Gopalan v/s Madras State
- (b) Golaknath v/s Punjab State
- (c) Keshavananda Bharati v/s Kerala State
- (d) None of these

U.P.P.C.S. (Pre) (Re. Exam) 2015

Ans. (c)

See the explanation of the above question.

128. Select the correct chronological order of the following judgements dealing with Fundamental Rights:

- (A) Golaknath v/s State of Punjab
- (B) Keshvananda Bharati v/s State of Kerala
- (C) Minerva Mills v/s Union of India
- (D) A.K Gopalan v/s State of Madras

Select the correct answer:

- (a) (D), (B), (C), (A)
- (b) (A), (B), (C), (D)
- (c) (D), (A), (B), (C)
- (d) (D), (C), (B), (A)

R.A.S/R.T.S (Pre) 2018

Ans. (c)

A.K. Gopalan v/s State of Madras (1950)
Golaknath v/s State of Punjab (1967)
Keshvananda Bharati v/s State of Kerala (1973)
Minerva Mills v/s Union of India (1980)

129. What is the position of the Right to Property in India?

- (a) Legal right available to citizens only
- (b) Legal right available to any person
- (c) Fundamental Right available to citizens only
- (d) Neither Fundamental Right nor legal right

I.A.S. (Pre) 2021

Ans. (b)

As the Constitution was originally drafted, the Right to Property was enshrined as a Fundamental Right. However, by the 44th Amendment Act, 1978 of the Constitution, the 'Right to Property' was removed as a fundamental right, and a new provision was added to the Constitution, i.e. Article 300-A. Now it is a legal right.

130. Right of Property belongs to which category amongst the following?

- (a) Legal Right
- (b) Fundamental Right
- (c) Natural Right
- (d) Human Right

Uttarakhand P.C.S. (Pre) 2021

Ans. (a)

See the explanation of the above question.

131. Right to Property is a –

- (a) Fundamental Right
- (b) Natural Right
- (c) Statutory Right
- (d) Legal Right

U.P.P.C.S. (Pre) 1996

Ans. (c) and (d)

See the explanation of the above question.

132. Read the following statements and choose the correct option :

Statement I : Right to property was deleted from the list of Fundamental Rights by the 44th Amendment Act, 1978.

Statement II : Right to property was made a legal right under Article 300-A in Part XII of the Constitution.

- (a) Statement I is true, but Statement II is false.
- (b) Statement I is false, but Statement II is true.
- (c) Statement I and Statement II both are true.
- (d) Statement I and Statement II both are false.

Chhattisgarh P.C.S. (Pre) 2020

Ans. (c)

See the explanation of the above question.

133. At present, right to property under the Constitution of India is a –

- (a) Fundamental Right
- (b) Legal Right
- (c) Moral Right
- (d) None of the above

U.P.P.C.S. (Pre) 1992

Uttarakhand P.C.S. (Pre) 2010

Ans. (b)

See the explanation of the above question.

134. Consider the following statements –

1. Article 301 is related to Right to Property.
2. Right to Property is a legal right but not a Fundamental Right.
3. Article 300-A was inserted in Indian Constitution by 44th Amendment during the period of Congress Government.

Which of aforesaid statements is/are correct?

- (a) Only 2
- (b) 2 and 3
- (c) 1 and 3
- (d) 1, 2 and 3

I.A.S. (Pre) 2005

Ans. (a)

Article 301 is related to freedom of trade, commerce and intercourse, and not to the right to property. The Right to property was a fundamental right under Article 19(1)(f), but by the 44th Amendment 1978, this Clause [19(1)(f)] has been omitted, and Article 300-A has been inserted, which provides that no person shall be deprived of his property save by authority of law. This amendment was done at the time of the Janta Party Government. After that amendment, the right to property became a legal right and ceased to be a fundamental right. Thus only statement 2 is correct.

135. In present times, Right to Property has been accepted in the Indian Constitution in which of the following forms?

- (a) Fundamental Right
- (b) Directive Principles of State Policy
- (c) Human Right
- (d) Legal Right

M.P.P.C.S. (Pre) 2025

Ans. (d)

See the explanation of the above question.

136. By which of the following Right to Property has been omitted?

- (a) 40th Amendment of Constitution
- (b) 42nd Amendment of Constitution
- (c) 44th Amendment of Constitution
- (d) 46th Amendment of Constitution

U.P.U.D.A./L.D.A. (Spl) (Mains) 2010

Ans. (c)

See the explanation of the above question.

137. When was the Fundamental Right to property abolished?

- (a) In 1978, by 44th Constitutional Amendment.
- (b) In 1982, by 46th Constitutional Amendment.
- (c) In 1973, by 31st Constitutional Amendment
- (d) None of these.

**M.P.P.C.S. (Pre) 1994
U.P.P.C.S. (Mains) 2015**

Ans. (a)

See the explanation of the above question.

138. Which of the following Amendment Act of the Constitution deleted the Right to Property from the list of Fundamental Rights?

- (a) 37th Constitution Amendment Act, 1975
- (b) 38th Constitution Amendment Act, 1975
- (c) 44th Constitution Amendment Act, 1978
- (d) 42nd Constitution Amendment Act, 1976

M.P.P.C.S. (Pre) 2019

Ans. (c)

See the explanation of the above question.

139. By which amendment the Right to Property was abolished?

- (a) 24th
- (b) 44th
- (c) 25th
- (d) 42nd

**U.P.P.C.S. (Mains) 2013
U.P. Lower Sub. (Pre) 2013**

Ans. (b)

The right to property has been abolished by the 44th Constitutional Amendment. Now, it is a legal right.

140. The 44th amendment to the Constitution of India removed the following right from the category of Fundamental Rights:

- (a) Freedom of Speech
- (b) Constitutional Remedies

(c) Property

(d) Freedom of Religion

U.P.P.C.S. (Mains) 2014

U.P.P.C.S. (Pre) 2007

Ans. (c)

See the explanation of the above question.

141. The 'Right to Property' was deleted from the list of fundamental rights guaranteed to the citizens of India by—

- (a) Forty-second Amendment
- (b) Forty-third Amendment
- (c) Forty-fourth Amendment
- (d) Forty-fifth Amendment

Chhattisgarh P.C.S. (Pre) 2011

U.P. Lower (Spl) (Pre) 2004

U.P. P.C.S. (Spl) (Mains) 2004

Ans. (c)

See the explanation of the above question.

142. Which one of the following is not a fundamental right?

- (a) Right to Freedom
- (b) Right to Equality
- (c) Right to Property
- (d) Right Against Exploitation

U.P.P.C.S. (Pre) 1990, 2002

Uttarakhand P.C.S. (Pre) 2002

U.P. Lower Sub. (Pre) 2013

Ans. (c)

See the explanation of the above question.

143. Which one of the following is not a fundamental right?

- (a) Right to Constitutional Remedy
- (b) Right to Property
- (c) Right to Peaceful Assembly
- (d) Right to free movement all over the Country

42nd B.P.S.C. (Pre) 1997

Ans. (b)

See the explanation of the above question.

144. Which one of the following is not among the six fundamental rights provided by the Constitution of India?

- (a) Right to Equality
- (b) Right to protest
- (c) Right against Exploitation
- (d) Right to Freedom of Religion

U.P.P.C.S. (Mains) 2015

Ans. (b)

The 'Right to protest' is not among the six fundamental rights provided by the Constitution of India.

145. Indian Constitution does not grant which of the following rights?

- (a) Right of Equal Shelter
- (b) Right to Equality
- (c) Right to Freedom of Religion
- (d) Right to Liberty

M.P.P.C.S. (Pre) 2010

Ans. (a)

The Indian Constitution gives Right to Equality (Art.14-18), Right to Freedom of Religion (Art.25-28) and Right to Liberty (Art.19 -22), but does not provide the Right to Equal Shelter.

146. Which of the following is not a fundamental right granted by the Indian Constitution to the citizens?

- (a) Right to Settle in any part of the Country
- (b) Right to Gender Equality
- (c) Right to Information
- (d) Right Against Exploitation

R.A.S./R.T.S. (Pre) 2003

Ans. (c)

According to the decision of the Supreme Court, the Right to information lies in the Right to freedom of speech and expression under Art. 19 (1) (a) of the Constitution of India. Although, it is not mentioned in the Constitution of India.

147. Consider the following statements:

No one can be compelled to sing the National Anthem since –

- 1. It will be violation of the Right to Freedom of Speech and Expression**
- 2. It will be violation of the Right to Freedom of Conscience and Practice and Propagation of Religion**
- 3. There is no legal provision obliging anyone to sing the National Anthem**

In these statements –

- (a) 1 and 2 are correct (b) 2 and 3 are correct
- (c) 1, 2 and 3 are correct (d) none is correct

I.A.S. (Pre) 1996

Ans. (c)

The Supreme Court overruled the decision of High Court pronounced in the case of Bijoe Emmanuel vs. State of Kerala. The court held that expelling the children based on their “conscientiously held religious faith” violated the

Constitution of India as enshrined in Article 19(1)(a) and 25(1). The court said that “No provision of law obliges anyone to sing the National Anthem.

148. Choose the fundamental rights available to Indian Citizen but not to aliens:

I. Freedom of Speech and Expression

II. Equality Before the Law

III. Right of Minorities

IV. Protection of Life and Liberty

- (a) I and III (b) I and IV
- (c) II and IV (d) II and III
- (e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (a)

The Right to freedom of speech and expression under Article 19, and the cultural and educational rights of minorities under Article 29, are available to Indian citizens only. They are not available to aliens.

149. Fundamental Rights provided by which of the following groups of Articles are granted only to 'Citizens' of India?

- (a) Articles 14, 20, 23 and 30
- (b) Articles 15, 21, 25 and 28
- (c) Articles 20, 21, 25 and 30
- (d) Articles 15, 16, 19 and 30
- (e) Question not attempted

Raj. P.C.S. (Pre) 2024

Ans. (d)

The part III of the Indian Constitution contains Article 12 to 35 and provide for Fundamental Rights. Certain Fundamental Rights under Part III are exclusively available only to the citizens, they are provided under Articles - 15, 16, 19, 29 and 30. Hence, option (d) 15, 16, 19 and 30 is the correct answer.

150. Which of the following fundamental rights is not available to foreign citizens?

- (a) Equality Before Law
- (b) Right to Freedom of Expression
- (c) Right to Freedom of Life and liberty
- (d) Right Against Exploitation

U.P.P.C.S. (Pre) 2007

U.P.P.C.S. (Pre) (Re. Exam) 2015

Ans. (b)

Under the Constitution, there are various fundamental rights which have been given to both citizens and non-citizens equally. These rights are (1) Equality Before Law (Art.14), (2) Protection in respect of conviction for offence (Art.20), (3) Protection of Life and Liberty (Art.21), (4) Right to Education (Art.21-A), (5) Right Against Exploitation (Art.23,24), (6) Right to Freedom of Religion (Art. 25,26,27 and 28). Whereas, the provision related to Article19(1)(a) (Freedom of speech and expression) is available only to citizens of India.

151. Which one of the following rights is available to all persons under the Indian Constitution?

- (a) Right to Equal Protection of the Law.
- (b) Right Against Discrimination.
- (c) Right to Freedom of speech and expression.
- (d) Cultural and Educational Rights.

U.P.P.S.C. (GIC) 2010

Ans. (a)

'Equality before the law or equal protection of the laws' is guaranteed by the Article 14 which is given to all persons under the Indian Constitution, but the 'Right Against Discrimination' (Art.15,16), Right to freedom of speech and expression (Art.19 (1) (a)) and the Cultural and Educational Rights (Art.29-30) are available only to the citizens of India.

152. Which of the following rights are not available to all persons in India?

Select your answer by using the code given below:

1. Equality Before the Law
2. Right Against Discrimination
3. Freedom to Move Freely throughout the Country
4. Right to Contest Election

Code :

- (a) 1, 3, 4
- (b) 1, 2, 4
- (c) 1, 2, 3
- (d) 2, 3, 4

U.P.P.C.S. (Mains) 2002

Ans. (d)

The Right to 'equality before the law' (Art.14) is available to every person in India, but the Right against discrimination (Art.15,16,17), the Right to move freely throughout the territory of India [Art.19(1)(d)] and the Right to contest elections are available only to citizens of India.

153. Which of the following rights conferred by the Constitution of India is also available to non-citizens?

- (a) Right to Constitutional Remedies
- (b) Freedom of Speech
- (c) Freedom to Move and Settle in any Part of the Country
- (d) Freedom to Acquire Property

**Jharkhand P.C.S. (Pre) 2011
53rd to 55th B.P.S.C. (Pre) 2011**

Ans. (a)

The right to constitutional remedies is available to both citizens of India and non-citizens (foreigners) but right to freedom of speech, to freely travel throughout the country and to acquire property is given only to the citizens of India.

154. A British citizen staying in India cannot claim right to –

- (a) Freedom of Trade and Profession
- (b) Equality before the Law
- (c) Protection of life and Personal Liberty
- (d) Freedom of Religion

I.A.S. (Pre) 1999

Ans. (a)

A British citizen staying in India cannot claim 'Right to Freedom of Trade and Profession' because the Right which has been provided under Article 19(1)(g) is available only to the citizens of India, but other three rights given in the options are available to every person.

155. Which of the following rights is not enjoyed by a British Citizen residing in India?

- (a) Freedom of Trade and Profession
- (b) Equality Before Law
- (c) Freedom of Life and Liberty
- (d) Religious Freedom (Faith)

Uttarakhand P.C.S. (Pre) 2024

Ans. (a)

The Indian Constitution under part III provides fundamental rights. Certain fundamental right are exclusively available only to the citizens, they are the rights under Articles 15, 16, 19, 29 and 30. Rest of the fundamental rights are available to citizens and non-citizens (foreigners), both. The Freedom of practising any profession, or to carry on any occupation, trade or business is a fundamental right under Article 19(1)(g) and available only to citizens. The equality before law under Article 14, The freedom of life and personal liberty under Article 21 and the freedom of conscience and free profession, practice and propagation of religion under Article 25 are the rights available to all persons, whether citizen or non-citizen.

- 156. A British Citizen staying in India can not claim right to**
- Freedom of religion
 - Protection of life and personal liberty
 - Freedom of trade and profession
 - Equality before law

70th B.P.S.C Re-Exam 2024

Ans. (c)

In India, certain Fundamental Rights are exclusively available to citizens, while others extend to all individuals, including foreign nationals. A British citizen residing in India cannot claim the right to "freedom of trade and profession" as enshrined in Article 19(1)(g) of the Indian Constitution, which is reserved solely for Indian citizens.

- 157. In India, if a religious sect/community is given the status of a national minority, what special advantages is it entitled to?**

- It can establish and administer exclusive educational institutions.
- The President of India automatically nominates a representative of the community to Lok Sabha.
- It can derive benefits from the Prime Minister's 15-Point Programme.

Which of the statements given above is/are correct?

- 1 only
- 2 and 3
- 1 and 3
- 1, 2 and 3

I.A.S. (Pre) 2011

Ans. (c)

No special representation for minorities is given under the Constitution. Thus statement (2) is wrong, while the other two statements are correct.

- 158. Bonded Labour was abolished in India, by an Act of Parliament enacted in the year –**

- 1971
- 1976
- 1979
- 1981

U.P. U.D.A./L.D.A. (Pre) 2010

U.P. U.D.A./L.D.A. (Pre) 2001

Ans. (b)

Article 23(1) of the Constitution prohibits the traffic in human beings and forced labour. Any contravention of this provision shall be an offence punishable in accordance with law. The Bonded Labour System (Abolition) Ordinance, 1975 was promulgated by the President on 25 October, 1975. To replace the said Ordinance, the Bonded Labour System (Abolition) Bill, 1976 was introduced in the Parliament. The Bonded Labour System (Abolition) Bill, 1976 was passed by both the Houses of Parliament, and it became an Act in 1976.

- 159. The child labour was prohibited in hazardous employment by–**

- Indian Constitution
- The judgment of Supreme Court on December 10, 1996
- United Nations Charter
- All of the above

U.P. Lower Sub. (Spl) (Pre) 2003

U.P. Lower Sub. (Pre) 2002

Ans. (d)

Indian Constitution under Article 24 says that no child under the age of fourteen years shall be employed to work in any factory or mine or engaged in any other hazardous employment. United Nations Charter has proclaimed that childhood is entitled to special assistance for the full and harmonious development of a child and his or her personality should grow up in a healthy environment. On December 10, 1996, in the case of M.C. Mehta Vs. State of Tamilnadu, the Supreme Court held that the employment of children below the age of 14 years into hazardous child labour is unconstitutional and hence prohibited it.

- 160. Fill in the blank:**

_____ without duties are like men without shadows.'

- Belief
- Rights
- Moral
- Work

M.P.P.C.S. (Pre) 2013

Ans. (b)

Sir Ernest Barker has said that, "Rights without duties are like men without shadow". So, the correct option is (b).

- 161. In the context of India, which one the following is the correct relationship between Rights and Duties?**

- Rights are correlative with Duties
- Rights are personal and hence independent of society and Duties
- Rights, not Duties, are important for the advancement of the personality of the citizen
- Duties, not Rights, are important for the stability of the State

I.A.S. (Pre) 2017

Ans. (a)

In the context of India, Rights and Duties are correlative. According to Holland, every right implies the active or passive forbearance by others of the wishes of the party having the right. The forbearance on the part of others is called a duty. Rights and duties are two faces of the same